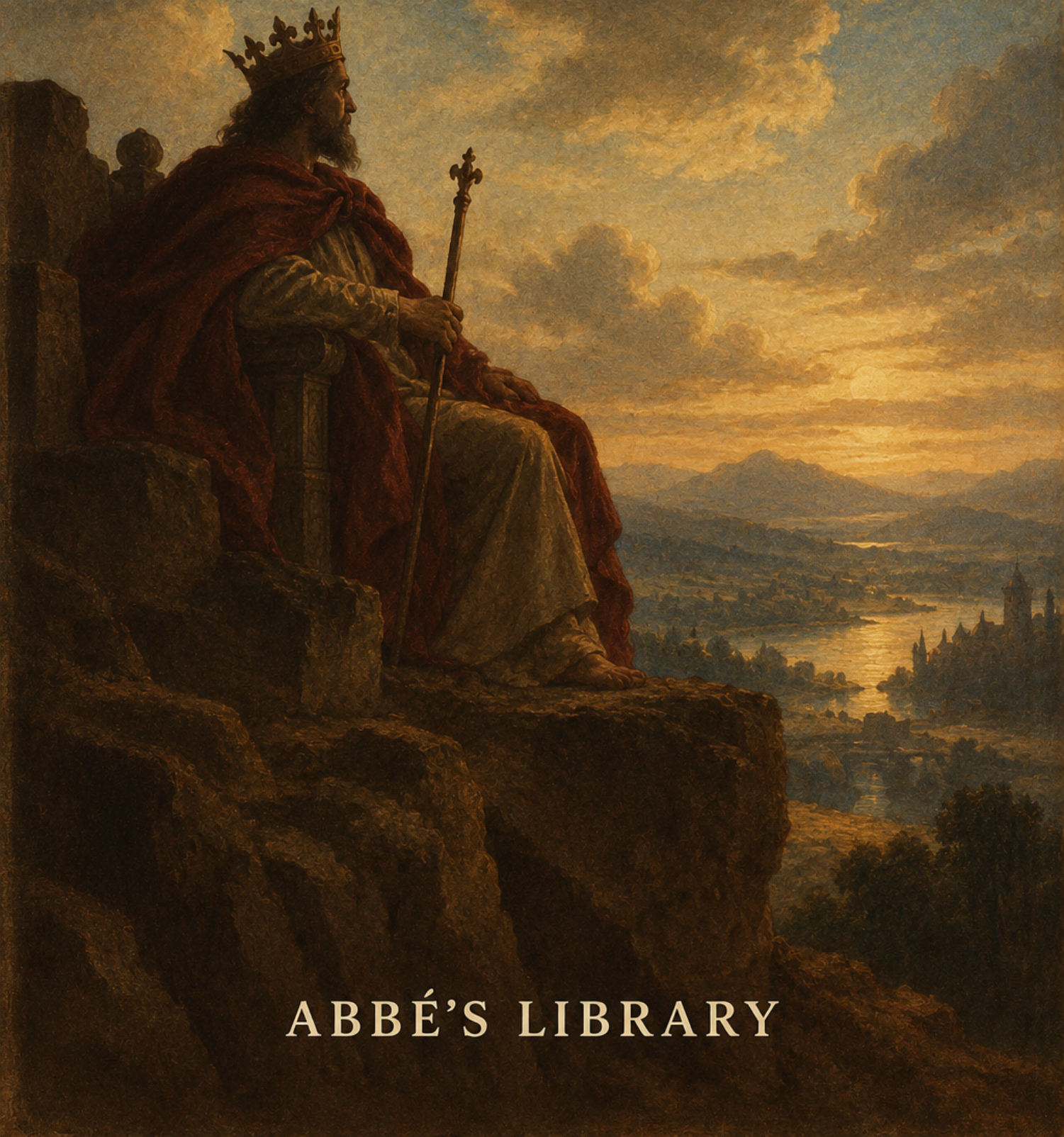


PATRIARCHA

ROBERT FILMER



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By Robert Filmer
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Chapter I

That the first Kings were Fathers of Families

(1) The idea that mankind naturally possesses liberty is new, appealing, and dangerous. (2) The question raised by Bellarmine, along with some contradictions noted in his argument. (3) Bellarmine's argument is answered using Bellarmine's own reasoning. (4) The royal authority of the patriarchs before the Flood. (5) The spreading of nations throughout the world after the Confusion of Babel was carried out by entire families, over which the fathers ruled as kings. (6) From these fathers, all kings are descended. (7) All kings are either fathers of their people, (8) or the heirs of such fathers, or usurpers of the rights belonging to such fathers. (9) On the confiscation of kingdoms. (10) On royal and paternal power, and their agreement with each other.

Since the time when scholastic theology began to flourish, there has been a common opinion maintained, both by theologians and by various other learned men, which affirms,

Mankind is naturally endowed and born with freedom from all subjection, and has the liberty to choose whatever form of government it pleases; and that the power which any one man has over others was at first granted according to the decision of the multitude.

This belief was first formed in the schools and has been fostered by all succeeding papists as sound theology. The theologians of the Reformed Churches have also accepted it, and ordinary people everywhere warmly embrace it, since it is very appealing to human desires. This is because it generously distributes a share of liberty to the common people, who glorify liberty as though the greatest human happiness could be found only in it, never remembering that the desire for liberty was the first cause of Adam's fall.

But although this popular opinion has recently gained a great reputation, it cannot be found in the writings of the ancient fathers and teachers of the early Church. It contradicts the teaching and history of the Holy Scriptures, the consistent practice of all ancient monarchies, and the very principles of the law of nature. It is difficult to say whether it is more mistaken in theology or more dangerous in politics.

Yet upon the foundation of this doctrine, both Jesuits and some other passionate supporters of the Genevan system of church governance have built a dangerous conclusion, which is,

That the people, or the multitude, have the power to punish or depose the prince if he violates the laws of the kingdom; witness Parsons and Buchanan: the first, under the name of Dolman, in the third chapter of his first book, attempts to prove that kings have been lawfully corrected by their commonwealths; the latter, in his book *De iure Regni apud Scotos*, maintains that the people

have the liberty to depose their prince. Cardinal Bellarmine and Calvin both appear to hold this view.

This desperate belief, by which kings are made subject to the judgments and removal by their subjects, follows (as its authors understand it) as a necessary consequence of that earlier position about the supposed natural equality and freedom of mankind, and the liberty to choose whatever form of government it pleases.

And although Sir John Heyward, Adam Blackwood, John Barclay, and some others have learnedly refuted both Buchanan and Parsons and have bravely defended the rights of kings in most matters, yet all of them, when they address the argument drawn from the natural liberty and equality of mankind, unanimously accept it as unquestionably true, not even once denying or opposing it; whereas if they had instead refuted this first mistaken principle, the entire structure of this vast engine of popular rebellion would collapse on its own.

The rebellious consequences that follow from this main article of mankind's natural freedom may serve as sufficient justification for a careful examination of the original truth of it. Much has been said by many people in support of it; fairness requires that some attention be given to opposing it.

In this discussion, I will present these cautions:

First, I have no intention of interfering with mysteries of state, such as secret matters of empire or cabinet councils, which ordinary people should not investigate. If unspoken trust is placed in the simplest craftsman regarding his own trade, how much more is it owed to a prince in the profound secrets of government? The causes and purposes of the greatest political actions and movements of the state astonish the mind and surpass the understanding of most people, and are known only to those who are constantly engaged in managing public affairs. Yet since it is necessary for every person to know how to obey his prince, this cannot be learned without some general understanding of the matters in which a sovereign may command. Therefore, when the commands and desires of superiors are issued and call for obedience, it is necessary that each person knows how to regulate his actions or his endurance, because according to the nature of what is commanded, either active or passive obedience must be given. This is not meant to limit the power of princes, but to define the extent of subjects' obedience, by giving to Caesar the things that belong to Caesar, and so on.

Secondly, I am not seeking to question or argue against the rights or liberties of this or any other nation. My main purpose is to investigate where these rights first came from, not to dispute what they are or how many there are, but rather whether they were derived from the laws of natural liberty or from the grace and generosity of princes. My desire and hope is that the people of England may, and do, enjoy as great privileges as any nation under heaven. The greatest liberty in the world, if properly considered, is for a people to live under a monarch. It is the Magna

Carta of this kingdom; all other shows or pretenses of liberty are merely different degrees of slavery and a freedom only to destroy freedom.

If those who defend the natural liberty of mankind take offense at my effort to examine it, they must be careful that they do not deny, in detail, the liberty they support in general. For if their main claim is true, it will follow that all people may examine the charters, deeds, or evidence by which they claim and hold the inheritance or free possession of their liberties.

Thirdly, I must not diminish the worth of all those learned men who hold a contrary opinion on the matter of natural liberty. Even the most profound scholar ever known has not been able to discover every truth that can be found, neither Aristotle in philosophy nor Hooker in theology. They are still human, yet I respect their judgments in most matters, and I admit that I myself am also subject to error in this case. Something I found mistaken in their opinions guided me in discovering that truth which, as I persuade myself, they missed. A dwarf may sometimes see what a giant overlooks, because while one truth is carefully searched for, another must necessarily be neglected.

Later writers have relied too heavily on the subtle schoolmen, who, to be sure to push the king below the pope, believed the safest way to elevate the people above the king, so that papal power might take the place of royal power. In this way, many ignorant subjects have been deceived into believing that a man may become a martyr for his country by betraying his prince. Likewise, the newly invented distinction dividing subjects into royalists and patriots is extremely unnatural, since the relationship between king and people is so close that their well-being is mutual.

(2) To make clear the foundations of the question about the natural liberty of mankind, I will present some passages from Cardinal Bellarmine that may best explain the state of this controversy.

Secular or civil power (he says) is established by men; it exists within the people unless they grant it to a prince. This power is originally in the whole multitude, as in its proper subject; for this power exists in divine law, but divine law has not given this power to any particular man. If positive law is removed, there is no reason why, among a multitude (who are equal), one person rather than another should rule over the rest. Power is given by the multitude to one man, or to several, by the same law of nature; for the commonwealth cannot exercise this power itself, therefore it is required to grant it to some one man, or to some few. It depends upon the consent of the multitude to appoint over themselves a king, a consul, or other magistrates; and if there is a lawful cause, the multitude may change the kingdom into an aristocracy or democracy.

Thus far Bellarmine, in whose passages is contained the strength of all that I have ever read or heard presented in support of the natural liberty of the subject.

Before I examine or refute these doctrines, I must first make a few observations about his words.

First, he says that by the law of God, power is originally in the people, by which he makes God the direct author of a democratic state, because a democracy is nothing other than the power of the multitude. If this is true, then not only aristocracies but all monarchies are completely unlawful, since they are ordained, as he believes, by men, whereas God himself has chosen a democracy.

Secondly, he maintains that although a democracy is ordained by God, the people have no power to use the power that God has given them, but only the power to give away their power. From this it follows that there can be no democratic government, because, according to him, the people must give their power to one man or to a few, which creates either a royal or aristocratic state, and which the multitude is bound to do even by the same law of nature that originally gave them power. And why, then, does he say that the multitude may change the kingdom into a democracy?

Thirdly, he concludes that if there is a lawful cause, the multitude may change the kingdom. Here I would like to know who will judge this lawful cause. If the multitude itself (for I see no other body that could), then this is a bold and dangerous conclusion.

(3) I now turn to examine the argument used by Bellarmine, and it is the only argument I can find that my author presents as proof of the natural liberty of the people. It is framed in this way: *That God has given or established power is evident from Scripture; but God has not given it to any particular person, because by nature all men are equal; therefore, he has given power to the people, or the multitude.*

To answer this argument, which is drawn from the natural equality of mankind, I will first use the help of Bellarmine himself, whose own words are these: *If many men had been created together out of the earth, they all ought to have been princes over their own descendants.* In these words, we have a clear admission that creation made man the ruler of his descendants.

And indeed, not only Adam, but the patriarchs who came after him, by the right of fatherhood, possessed royal authority over their children. Bellarmine does not dare to deny this either. The patriarchs (he says) were endowed with kingly power, as their actions testify; for as Adam was lord over his children, so his children, under him, had command and authority over their own children, but still in subordination to the first parent, who was supreme lord over his children's children for all generations, as being the grandfather of his people.

(4) I do not see, then, how the children of Adam, or of any other man, can be free from being subject to their parents. And since this subjection of children is the source of all royal authority, established by God himself, it follows that civil power, not only in general, is established by divine institution, but even its specific assignment to the eldest parents. This completely removes that new and common distinction which gives only universal and absolute power to God, but

gives conditional power, regarding the particular form of government, to the choice of the people.

This lordship, which Adam had by command over the whole world, and which the patriarchs possessed by right of descent from him, was as great and as absolute as the dominion of any monarch who has existed since the creation. For the authority over life and death, we find that Judah, the father, pronounced a sentence of death against Tamar, his daughter-in-law, for playing the harlot, saying, *Bring her out, so that she may be burned*. Concerning war, we see that Abram commanded an army of 318 soldiers from his own household. And Esau met his brother Jacob with 400 armed men. Regarding peace, Abraham made an agreement with Abimelech and confirmed the terms with an oath. These acts of judging capital crimes, making war, and establishing peace are the chief marks of sovereignty found in any monarch.

(5) Not only until the Flood, but also after it, this patriarchal power continued, as the very name “patriarch” partly proves. The three sons of Noah had the whole world divided among them by their father, and from them the whole world was populated, according to the blessing given to him and his sons: *Be fruitful and multiply, and fill the earth*. Most of the most civilized nations of the earth trace their origin back to one of the sons or nephews of Noah, who were scattered abroad after the Confusion of Babel. In this scattering, we must certainly find the establishment of royal power throughout the kingdoms of the world.

It is a common opinion that at the Confusion of Tongues there were seventy-two distinct nations established, and that these were not disordered crowds without leaders or governors, free to choose whatever rulers or form of government they preferred, but rather distinct families that had fathers as rulers over them. From this it appears that even in the Confusion, God took care to preserve fatherly authority by distributing the diversity of languages according to the diversity of families. This is plainly shown by the text. First, after listing the sons of Japheth, the conclusion is, *By these the islands of the Gentiles were divided in their lands, each according to his language, according to their families, in their nations*. Likewise, it is said, *These are the sons of Ham according to their families, according to their languages, in their countries, and in their nations*. Similarly, we read, *These are the sons of Shem according to their families, according to their languages, in their lands, according to their nations*. These are the families of the sons of Noah according to their generations in their nations, and by these the nations were divided across the earth after the Flood.

In this division of the world, some believe that Noah used lots to distribute it; others claim that he sailed around the Mediterranean Sea for ten years and, as he traveled, assigned to each son his portion, and thus divided the then-known world into Asia, Africa, and Europe, according to the number of his sons, the boundaries of which three parts are all found in that central sea.

(6) But however uncertain the method of this division may be, it is very certain that the division itself was carried out by families descended from Noah and his children, over whom the parents were heads and princes.

Among these was Nimrod, who undoubtedly (as Sir Walter Raleigh affirms) was, by proper right, lord or king over his family. Yet, against right, he expanded his empire by violently seizing the rights of other lords of families. In this sense, he may be called the author and first founder of monarchy. And all those who credit him as the original source of royal power maintain that he gained it through tyranny or usurpation, not through any lawful election by the people or the multitude, nor through any agreement with them.

As this patriarchal power continued in Abraham, Isaac, and Jacob, even until the Egyptian captivity, so we find it among the sons of Ishmael and Esau. It is said, *These are the sons of Ishmael, and these are their names according to their castles and towns, twelve princes of their tribes and families. And these are the names of the dukes that came from Esau, according to their families and their places by their nations.*

(7) Some may perhaps think that these princes and dukes of families were merely minor lords under greater kings, because there were so many of them that their individual territories could only have been small and not worthy of the title of kingdoms. But they must consider that at first, kings did not possess such large dominions as they do today. We find in the time of Abraham, which was about three hundred years after the Flood, that in a small region of Asia, nine kings met together in battle, most of whom were only kings of individual cities, along with the surrounding territories, such as Sodom, Gomorrah, Shinar, and others. In the same chapter, mention is made of Melchizedek, king of Salem, which was only the city of Jerusalem. And in the catalogue of the kings of Edom, the names of each king's city are recorded as the only way to distinguish their dominions. In the land of Canaan, which was only a small region, Joshua destroyed thirty-one kings; and around the same time, Adonibezek had seventy kings whose hands and toes he had cut off and made them eat under his table. A few years after this, thirty-two kings came to Benhadad, king of Syria, and about seventy kings of Greece went to the wars of Troy. Caesar found more kings in France than there are now princes there, and when he sailed into this island, he found four kings in our county of Kent. This great number of kings in each nation is an argument that their territories were small and strongly confirms our belief that kingdoms were first established only through the division of families.

By clear historical examples, we can trace this paternal government up to the time when the Israelites entered Egypt, where the exercise of supreme patriarchal authority was interrupted because they were subject to a stronger ruler. After the Israelites returned from bondage, God, out of special care for them, chose Moses and Joshua successively to govern as princes in the place of the supreme fathers; and after them, for a time, he raised up judges to defend his people in times of danger. But when God gave the Israelites kings, he restored the ancient and original

right of direct succession to paternal government. And whenever he chose a specific person to be king, he intended that the descendants would also benefit from it, as being sufficiently included in the person of the father, even though only the father was named in the grant.

(8) It may seem unreasonable to maintain that kings today are the fathers of their people, since experience appears to show the opposite. It is true that all kings are not the natural parents of their subjects, yet they are either, or are to be regarded as, the next heirs to those first ancestors who were originally the natural parents of the entire people, and by their right they succeed to the exercise of supreme authority. Such heirs are not only lords over their own children, but also over their brothers and all others who were subject to their fathers. Therefore, we find that God told Cain regarding his brother Abel, *His desires shall be subject to you, and you shall rule over him*. Likewise, when Jacob bought his brother's birthright, Isaac blessed him in this way: *Be lord over your brothers, and let the sons of your mother bow before you*.

As long as the first fathers of families lived, the name of patriarchs properly belonged to them; but after several generations, when the actual fatherhood itself had ended and only the right of the father descended to the true heir, then the title of prince or king became more appropriate to express the authority of the one who succeeded only to the right that his ancestors had naturally possessed as fathers. In this way, it came to pass that many a child, by succeeding as king, holds the authority of a father over many elderly people and bears the title of father of his country.

(9) It may be asked what becomes of the right of fatherhood in cases where the crown is forfeited because there is no heir. Does it then pass to the people? The answer is that it is only the negligence or ignorance of the people that prevents them from knowing who the true heir is, for there is always an heir. If Adam himself were still alive and about to die, it is certain that there would be one man, and only one, in the world who would be the next heir, although the knowledge of who that one man should be might be completely lost.

Even if this ignorance of the people is accepted, it does not in any way mean that, for lack of heirs, supreme power passes to the multitude, or that they have the power to rule and choose whatever rulers they wish. No. In such cases, royal power passes to the princes and independent heads of families, because every kingdom is divided back into the parts from which it was originally formed. By the uniting of great families or small kingdoms, we find that larger monarchies were first established, and into such parts they often return again over time. And because the relationships of ancient families are often unclear or forgotten, the wisdom of almost all princes has considered it proper, at many times, to adopt as heads of families and princes of provinces those whose merit, abilities, or fortunes have made them worthy and capable of such royal favor. All such principal heads and fathers have the power to consent to the uniting or transferring of their paternal right of sovereign authority to whomever they choose. *And the one who is thus elected claims his power not as a gift from the people, but as one properly appointed*

by God, from whom he receives his royal authority as a universal father, although it is confirmed by the action of the heads of the people.

If it pleases God, for the correction of a prince or the punishment of the people, to allow princes to be removed and others to be placed in their place, whether by the factions of the nobility or by rebellion of the people, in all such cases the judgment of God, who has the power to give and take away kingdoms, is most just. Yet the actions of men who carry out God's judgments without divine authorization are sinful and blameworthy. God merely uses and turns the unrighteous actions of men to accomplish his righteous decrees.

(10) In all kingdoms or commonwealths in the world, whether the prince is the supreme father of the people, or only the true heir of such a father, or whether he came to the crown through usurpation, election by the nobles, election by the people, or any other means, or whether a few or a multitude govern the commonwealth, the authority that exists in any one person, or in many, or in all, is still only the rightful and natural authority of a supreme father. There is, and always will be, until the end of the world, a natural right of a supreme father over every multitude, although by the secret will of God, many at first most unjustly obtain the exercise of it.

To confirm this natural right of royal power, we find in the Ten Commandments that the law which commands obedience to kings is expressed in the words, *Honor your father*, as if all power originally resided in the father. If obedience to parents is immediately required by natural law, and subjection to princes comes only through the mediation of human arrangement, what reason is there that the laws of nature should yield to the laws of men? Just as we see that the power of the father over his child yields and becomes subordinate to the power of the magistrate.

If we compare the natural rights of a father with those of a king, we find them to be essentially the same, without any difference except in their scope and extent. As the father over one family, so the king as father over many families extends his care to preserve, provide for, educate, and defend the whole commonwealth. His wars, his peace, his courts of justice, and all his acts of sovereignty are directed only toward preserving and distributing to every subordinate and lesser father, and to their children, their rights and privileges, so that all the duties of a king are summed up in a universal fatherly care for his people.

Chapter II

It is unnatural for the People to Govern or to Choose Governors.

(1) Aristotle examined and defended the freedom of the people. (2) Suarez argues against the royal authority of Adam. (3) Families are described in different ways by Aristotle, Bodin, and others. (4) Suarez contradicts Bellarmine. (5) On the election of kings. (6) By the majority of the people. (7) By proxy and by silent acceptance. (8) No example in Scripture of peoples choosing their king. Mr. Hooker's judgment on this matter. (9) God has always governed by monarchy. (10) Bellarmine and Aristotle's judgment concerning monarchy. (11) The imperfections of Roman democracy. (12) Rome began its empire under kings and was perfected under emperors. In times of danger, the people of Rome always fled to monarchy. (13) Whether democracies were invented to restrain tyrants, or whether they arose secretly. (14) Democracies criticized by their own historians. (15) Popular government more bloody than tyranny. (16) On a mixed government of king and people. (17) The people may not judge or correct their king. (18) No tyrants in England since the Conquest.

(1) By comparing these proofs and reasons drawn from the authority of Scripture, it appears to be little less than a paradox that Bellarmine and others claim that the multitude has the freedom to choose whatever rulers they please.

Did the patriarchs receive their power from their own children? Bellarmine does not say so, but rather the opposite. If fatherhood possessed this authority for so many ages by the law of nature, when was it lost, or when was it forfeited, or how was it transferred to the liberty of the multitude?

Because Scripture does not support the liberty of the people, many turn to natural reason and to the authority of Aristotle. I must ask permission to examine or explain the opinion of this great philosopher. Briefly, I find this statement in the third chapter of his sixth book: *It seems to some that it is not natural for one man to be lord over all the citizens, since a city is made up of equals.* D. Lambine, in his Latin interpretation of this text, omitted the translation of one word, by which he makes it appear to be Aristotle's own opinion, although Aristotle presents it only as the opinion of some people. This neglect, or deliberate omission by Lambine, in failing to translate such an important word, has misled many who, looking only at this Latin translation, have concluded, and have caused the world to believe until now, that Aristotle supports the natural equality of men. Not only our English translator of Aristotle's *Politics* was misled in this place by following Lambine, but even the learned Monsieur Duvall, in his *Synopsis*, agrees with them. Yet this version of Lambine is considered the best and was printed in Paris with Casaubon's corrected Greek text, although in translating this passage the older translations were more faithful. Anyone who compares the Greek text with the Latin will find that Casaubon had good

reason, in his preface to Aristotle's works, to complain that even the best translations of Aristotle required correction.

To prove that in these words, which appear to support the equality of mankind, Aristotle is not speaking according to his own judgment, but only repeating the opinion of others, we find that he clearly expresses his own view that the power of government originally arose from the right of fatherhood, which cannot possibly agree with the supposed natural equality that men imagine. For in the first book of his *Politics*, he agrees exactly with Scripture and lays this foundation of government:

The first society, he says, made up of many households is a village, which most naturally appears to be a colony of families or relatives descended from children and grandchildren. Therefore, in the beginning, cities were governed by kings, because the eldest in every household was king; and for the same reason it is so in colonies. And in the fourth chapter of his *Politics*, he calls the institution of kingship the first and most divine form of government, by defining tyranny as a corruption of the first and most divine form.

Whoever carefully considers these passages will find little support in natural reason from Aristotle for proving the natural liberty of the multitude. Even before him, the divine Plato concluded that a commonwealth is nothing more than a large family. I know that Aristotle disputes this position with his teacher, but most unjustly, because in doing so he contradicts his own principles; for both of them agree in tracing the origin of civil government to the original form of family government. There is little doubt that Moses' history of creation guided these two philosophers in discovering this concept of direct hereditary subjection, derived from the laws of the first parents, according to the rule of St. Chrysostom: *God made all mankind from one man, so that he might teach the world to be governed by a king and not by a multitude.*

Ignorance of the creation led to several errors among the pagan philosophers. Polybius, although otherwise a very profound philosopher and wise historian, falters in this matter. While searching for the origins of civil societies, he imagined that groups of men, after a flood, famine, or plague, gathered together like herds of cattle without any structure, until the strongest bodies and boldest minds gained mastery over their companions, just as he says happens among bulls, bears, and roosters.

And Aristotle himself, forgetting his earlier teaching, tells us that the first heroic kings were chosen by the people because they had deserved well of the multitude, either by teaching them new arts, or by fighting wars for them, or by gathering them together, or by dividing land among them. Aristotle also had another notion, that those men who proved wise in mind were by nature intended to be lords and rulers, and that those who were strong in body were meant to obey and to be servants. But this is a dangerous and uncertain rule and not without some foolishness. For if a man is both wise and strong, what would Aristotle have done with him? If he was wise, he could not be a servant; and if he had strength, he could not be a master. Furthermore, to speak as

a philosopher, nature intends all things to be perfect both in intelligence and strength.

Foolishness or weakness proceeds from some defect in birth or education, because nature aims at perfection in all her works.

(2) Suarez the Jesuit argues against the royal authority of Adam in defense of the freedom and liberty of the people, and he reasons in this way. By the right of creation, he says, Adam possessed only domestic authority, not political authority. He had authority over his wife and fatherly authority over his sons while they were not yet free. In time, he might also have had servants and a complete household, and within that household he might have exercised full domestic authority. But after families multiplied and people became separated and became heads of separate families, they each had the same authority over their own families. Political authority, however, did not begin until families were gathered together into one complete community. Therefore, since the community did not begin with the creation of Adam, nor by his will alone, but by the agreement of all those who formed the community, we cannot say that Adam naturally possessed political leadership in that community, because this cannot be derived from any natural principle. By the force of the law of nature alone, it is not proper for any ancestor to be king over his descendants. And if this cannot be derived from the principles of nature, we cannot say that God gave him this authority by any special gift or divine providence, because there is no revelation or testimony in Scripture to support it. Thus far, Suarez.

Whereas Suarez grants that Adam had fatherly authority over his sons, yet confines this authority to a single family, he seems either to imagine that all of Adam's children lived together in one house under one roof with their father, or else that as soon as any of his children lived outside his house, they ceased to be subject to him and thereby became free. For my part, I cannot believe that Adam, even if he were the sole monarch of the world, possessed such a vast palace as could contain any considerable portion of his children. It is more likely that some simple cottage or tent served as the place where he held his court. It would be unreasonable to suppose that he lost part of his authority merely because his children lived outside the walls of his house. But if Suarez will allow that all of Adam's children were part of his family, regardless of whether they lived in separate dwellings, provided their homes were either close together or at such a distance that they could still easily receive his fatherly commands, and that all who were under his authority belonged to his family, even though they had many children or servants who were married and had children of their own, then I see no reason why we should not call Adam's family a commonwealth, except that we would merely be arguing about words. For Adam lived 930 years and saw seven or eight generations descend from him, and he might have lived long enough to command not only his children but also their descendants, forming a population far larger than many commonwealths and kingdoms.

(3) I know that political theorists and civil lawyers do not fully agree on the definition of a family, and Bodin appears in one place to restrict it to a single household. Yet in his definition, he expands its meaning to include all persons under the obedience of one and the same head of

the family, and he better supports the proper meaning of the Hebrew word for a family, which is derived from a word that signifies a head, a prince, or a lord, rather than the Greek word for family, which is derived from a word that means a house. Nor does Aristotle limit a family to one house, but considers it to be made up of those who live together in daily interaction. Even before him, Charondas called a family *homosipioi*, meaning those who eat together from a common pantry. And Epimenides the Cretan calls a family *homocapnoi*, meaning those who sit together by a common fire or smoke.

But let Suarez understand what he wishes by Adam's family, if he will only admit, as he must, that Adam and the patriarchs possessed absolute authority over life and death, peace and war, and similar matters within their households or families. He must at least allow us to call them kings of their households or families. And if they were such by the law of nature, what liberty would remain for their children to dispose of?

Aristotle permits Plato and those who claim that political and domestic societies are all the same and differ not in kind but only in size, as though there were no difference between a large household and a small city. The only argument I find that he offers against them is this:

The partnership between husband and wife differs from the partnership between master and servant because they have different purposes. The intention of nature in joining male and female is reproduction, but the purpose of master and servant is preservation. Therefore, a wife and a servant are naturally distinct, because nature does not work like the craftsmen of Delphi, who make one tool for many uses. If we accept this argument as valid, it proves only that marital and master-servant relationships differ. But it does not follow that domestic and political societies differ in the same way. For although it proves that a family consists of two distinct types of relationships, it does not prove that a family and a commonwealth are different, because both types of relationships exist in both the family and the commonwealth.

And since this argument does not address our main point, because it is not able to prove what it is intended to prove—for even if it were granted (which is not true) that reproduction and preservation differ in their specific purposes, they still agree in their general purpose, and both serve for the preservation of mankind, just as different servants may have different specific duties, such as one brewing and another baking, yet they agree in the overall preservation of the family.

Besides, Aristotle admits that among the barbarians (by which he means all who are not Greeks), a wife and a servant are considered the same, because by nature no barbarian is fit to govern. It is fitting, he says, that the Greeks should rule over the barbarians, since by nature a servant and a barbarian are the same. Their family consists only of an ox as a male servant and a wife as a female servant, so they are fit only to rule their wives and their animals. Finally, Aristotle, if it had suited him, might have remembered that nature does not always make one thing for only one use. He knows that the tongue serves both to speak and to taste.

(4) But leaving Aristotle aside and returning to Suarez, he says that Adam had fatherly power over his sons while they were not yet free. Here I wish the Jesuit had explained how and when sons become free. I know of no way by the law of nature. I think it happens only by the favor of parents, who, when their children reach maturity and understanding and can relieve their parents of part of their fatherly responsibilities, are then willing to give up some portion of their authority. Therefore, the customs of some countries in certain cases grant freedom to the children of lower-status parents. But many nations have no such custom and instead have strict laws requiring obedience from children. The judicial law of Moses gives full authority to the father to have his disobedient son stoned to death, provided it is done in the presence of a magistrate. Yet it did not belong to the magistrate to investigate or judge the fairness of the cause. The law was established in such a way that the father was not permitted, in anger or secretly, to kill his son.

Also, by the laws of the Persians, the people of Upper Asia, the Gauls, and the people of the West Indies, parents have authority over the life and death of their children.

The Romans, even during their most popular form of government, enforced this law, and the authority of parents was confirmed and strengthened by the laws of the Twelve Tables, allowing parents to sell their children two or three times over. By the help of fatherly authority, Rome prospered for a long time and was often saved from great dangers. Fathers even removed their own sons from public assemblies when, while serving as tribunes, they proposed laws that encouraged rebellion.

A notable example is Cassius, who threw his son headfirst out of the public assembly while he was proposing the Agrarian Law for dividing land for the benefit of the people, and afterward, by his own private judgment, sentenced him to death by throwing him from the Tarpeian Rock. The magistrates and the people stood by in astonishment and did not dare to resist his fatherly authority, even though they strongly desired that law for the division of land. From this it appears that it was lawful for a father to decide the life of his child, even against the will of magistrates or the people. The Romans also had a law stating that whatever children acquired was not their own but belonged to their father, although Solon later made a law that freed a son from supporting his father if his father had not taught him a trade by which he could earn his living.

Suarez continues and tells us that, in the course of time, Adam possessed complete domestic authority. I do not understand what this complete domestic authority is, nor how or in what way it truly and essentially differs from political authority. If Adam did or might exercise the same authority that a king now exercises in a commonwealth, then royal authority is not fundamentally different from domestic authority. Although they may differ in degree or extent, with one covering a larger or smaller territory, the same difference is also found among political states. Therefore, it follows that domestic and political authority differ no more than a small commonwealth differs from a large one. Next, Suarez claims that a community did not begin at the creation of Adam. This is true, because he had no one with whom to form a community; yet

community immediately followed his creation and existed by his will alone. For it was within his sole authority, as lord of all, to determine what his sons would possess individually and what they would hold in common. Thus, private property and communal property originally came from him, and it is the duty of a father to provide both for the common good of his children and for their individual needs.

Finally, Suarez concludes that by the law of nature alone, it is not proper for any ancestor to be king over his descendants. This claim is directly contradicted by Bellarmine, who clearly states that the first parents ought to have been princes over their descendants. Until Suarez provides some reason for what he asserts, I will trust Bellarmine's proofs more than Suarez's denials.

(5) But let us, for a moment, accept the opinion of Bellarmine and Suarez, and of all those who place supreme authority in the whole people, and ask them whether they mean that there is only one and the same power in all the people of the world, so that no authority can be granted unless all men on earth meet together and agree to choose a governor.

Suarez gives this answer: that it is hardly possible, nor practical, for all the people in the world to gather together into one community. It is more likely that either never, or only for a very short time, did this power exist in this way within the entire multitude of mankind gathered together. But soon after creation, men began to divide into several commonwealths, and this separate power existed within each of them.

This answer, that it is hardly possible or practical, raises a new question: how did this separate power come to each particular community when God gave it only to the whole multitude, and not to any particular assembly of men? Can they show or prove that the entire multitude ever met and divided this power, which God gave them collectively, into portions, assigning a distinct authority to each commonwealth? Without such an agreement, I do not see, according to their own principles, how there could be any election of a magistrate by any commonwealth, but only a mere usurpation of the privilege belonging to the entire world. If anyone believes that particular groups of people had the power, by their own choice, to divide themselves into separate commonwealths, those who think so have neither reason nor proof for such a belief. By this idea, a path is opened for every small faction to establish a new commonwealth and create more commonwealths than there are families in the world. But let this also be granted to them, that in each particular commonwealth there exists a distinct power in the multitude. Has a general assembly of an entire kingdom ever been known to elect a prince? Is there any example of such a thing found anywhere in the world? To imagine such a thing is to imagine something close to impossible. Therefore, no form of government or kingship was ever established according to this supposed law of nature.

(6) It may be answered by some that if either the greater part of a kingdom, or even a smaller part acting by themselves, and all the rest by proxy, or if those who did not participate in the

election later approve it by silent consent, then in all these cases it may be said to be the act of the whole multitude.

Regarding the actions of the majority of the multitude, it is true that in political and human institutions, it is often established that the votes of the greater number shall overrule the rest. Such laws are binding because, where people are assembled by human authority, the same authority that assembles them can also limit and direct how that authority is exercised. By such delegated authority, made known by law or custom, either the majority, or two-thirds, or three-fifths, or similar proportions, may have the power to overrule the liberty of their opponents. But in assemblies that derive their authority from the law of nature, this cannot be so. Whatever freedom or liberty is due to any person by the law of nature cannot be changed, limited, or taken away by any inferior authority. Neither a single person nor a multitude can give away the natural right of another. The law of nature is unchangeable, and although one person may prevent another from using or exercising his natural right, no one loses the right itself, because the right and the use of that right can be distinguished, just as right and possession are often different. Therefore, unless it can be proven by the law of nature that the majority, or some other portion, has the power to overrule the rest of the multitude, it must follow that the actions of entire multitudes are not binding on all, but only on those who consent to them.

(7) Regarding the issue of proxies, it cannot be shown or proven that all those who were absent from popular elections ever gave their votes to some of their fellow citizens. I ask for only one example from the history of the whole world in which a commonwealth can be named where the multitude, or even the greater part of it, consented, either by direct vote or by representation, to the election of a prince. The ambition of a single person, or sometimes of several, or the faction of a city or its citizens, or the mutiny of an army, has often raised or overthrown princes; but they have never done so under the claimed authority of the entire multitude.

Lastly, if the silent acceptance of a governor by part of the people is considered evidence that they agreed in electing him, then by the same reasoning, the silent acceptance of the whole commonwealth could be used to justify it. From this it would follow that every prince who comes to the throne, whether by inheritance, conquest, or usurpation, could be said to have been elected by the people. This conclusion is absurd, because in such cases the people are so far from having the liberty to choose that they often do not even have the liberty to object.

(8) But it is useless to argue against the liberty of the people in electing kings as long as men are persuaded that examples of it can be found in Scripture. Therefore, it is appropriate to discover the foundation of this error. It is clear from an explicit passage that choosing a king is one thing, and appointing or establishing a king over the people is another. The latter authority belonged to the children of Israel, but not the former. This distinction is most clearly shown in Deuteronomy 17:15, where the law of God says, *You shall surely set a king over you whom the Lord shall choose*. Therefore, God must choose, and the people only establish.

Mr. Hooker, in the eighth book of his *Ecclesiastical Polity*, clearly explains this distinction. His words are worth quoting: *Many passages of Scripture are cited concerning the solemn coronation or inauguration of Saul, David, Solomon, and others by the nobles, elders, and people of the commonwealth of Israel, as though these ceremonies were acts by which the right of rule was granted. These strange, untrue, and unnatural ideas are spread by those who promote rebellion, merely to stir restless spirits and encourage them with the possibility of aspiring to thrones, if they can win the favor of the people, regardless of whatever hereditary title others may have had before them. I would not mention these unjust and arrogant opinions if they did not thereby give false credibility to the truth. For unless we openly reject all law, fairness, and reason, we must acknowledge that in hereditary kingdoms, birthright gives the right to sovereign authority, and the death of the predecessor places the successor by blood into possession. Those public ceremonies previously mentioned either serve as open recognition of the heir's right or belong to the formal process of placing him into possession of what he already has a right to.*

This is Mr. Hooker's judgment regarding the power of the Israelites to set a king over themselves. Undoubtedly, if the people of Israel had possessed the power to choose their king, they would never have chosen Joash, a child of only seven years old, nor Manasseh, who was a boy of twelve, since, as Solomon says, *Woe to the land whose king is a child*. Nor is it likely they would have elected Josiah, who was also very young and the son of a wicked and idolatrous father, whose own servants murdered him. Yet all the people established this young Josiah and executed the conspirators who killed Amon, his father. God rewarded this act of the people by making Josiah the most religious king that nation ever had.

(9) Because it is claimed that the people have the power to choose not only what form of government but also what governors they please—this being Bellarmine's view in the passages cited earlier—it is necessary to examine the strength of the arguments made in defense of popular governments against the natural form of kingdoms that I have maintained. Here I must first remind the cardinal of what he himself states in other places, where he says that when God created all mankind from one man, he clearly showed that he preferred the government of one person rather than of many. Again, God showed his approval of monarchy when he endowed not only humans but all creatures with a natural inclination toward monarchy, and it cannot be doubted that a natural inclination should be attributed to God, who is the author of nature. And again, in a third instance, we can determine what form of government God confirmed by his authority from the commonwealth that he established among the Hebrews, which was not aristocratic, as Calvin says, but plainly monarchical.

(10) Now if God, as Bellarmine says, has taught us by natural instinct, demonstrated to us by creation, and confirmed by his own example, the excellence of monarchy, why should Bellarmine or we doubt that it is natural? Do we not find that in every family, the rule of one person alone is most natural? God always governed his own people by monarchy alone. The

patriarchs, dukes, judges, and kings were all monarchs. Nowhere in all of Scripture is there any mention approving any other form of government. At the time when Scripture says, *There was no king in Israel, but every man did what was right in his own eyes*, even then the Israelites were under the kingly authority of the fathers of individual families. For in the consultation following the war against the Benjaminites, concerning providing wives for them, we find that only the elders of the congregation held authority. Complaints were also brought to them, as appears from verse 22. And although mention is made of all the children of Israel, the entire congregation, and all the people, yet by the term *all*, Scripture means only all the fathers, and not the entire multitude, as the text clearly explains itself in 2 Chronicles 1:2, where Solomon speaks to all Israel, meaning the captains, the judges, and every governor, the chiefs of the fathers. Thus, the elders of Israel are explained to be the chiefs of the fathers of the children of Israel.

At that time also, when the people of Israel asked Samuel for a king, they were already governed by kingly authority. God, out of special love and care for the house of Israel, chose to be their king himself and governed them at that time through his representative Samuel and his sons. Therefore, God tells Samuel, *They have not rejected you, but me, that I should not reign over them*. It seems that they did not object to having a king by appointment, but they wanted one by hereditary succession, like all the other nations. All nations at that time had kings, and those kings ruled by inheritance, not by election. We do not find that the Israelites prayed that they themselves might choose their own kings; they never even imagined such liberty, even though the elders of Israel were gathered together. If other nations had elected their own kings, there is no doubt that the Israelites would have been just as eager to imitate other nations in choosing a king as they were in having one.

Aristotle, in his book *Politics*, when he compares the different forms of government, is very reserved in explaining which form he considers best. He argues carefully on many points and wisely points out many errors, but he does not reach a clear conclusion. In all those books, I find little praise of monarchy. It happened that he lived at a time when the Greeks were filled with various commonwealths, who had enough learning to make them rebellious. Yet in his *Ethics*, he shows such good judgment that he plainly admits that monarchy is the best form of government, and that popular government is the worst. And although he is less direct about this in his *Politics*, the force of truth occasionally leads him to statements that amount to the dignity of monarchy. He admits it to be the first, the natural, and the most divine form of government, and that even the gods themselves lived under a monarchy. What more could a pagan say?

Indeed, for a long time, the world knew no other form of government except monarchy. The best order, the greatest strength, the most stability, and the easiest government are all found in monarchy and in no other form of government. New models of commonwealths were first invented in a small corner of the world among a few cities of Greece and have been imitated in very few other places. Those cities were first governed by kings for many years until the disorder, ambition, or faction of the people made them attempt new forms of government, all of

which changes proved extremely bloody and miserable for those who caused them, and successful only in lasting a short time.

(11) To further demonstrate the imperfection of popular government, let us examine the most flourishing democracy the world has ever known, which was that of Rome. First, regarding its durability, it lasted at most 480 years, from the expulsion of Tarquin to Julius Caesar. In contrast, the Assyrian monarchy lasted without interruption for at least twelve hundred years, and the empire of the East continued for 1,495 years.

2. Regarding its stability, during those 480 years there was never any settled form of government in Rome. After they had once lost the natural authority of kings, they could not determine which form of government to adopt. Their instability shows that they found fault with every change. At first, they chose two annual consuls instead of kings. Second, these did not satisfy them for long, so they created tribunes of the people to defend their liberty. Third, they abandoned tribunes and consuls and chose ten men to create laws. Fourth, they again returned to consuls and tribunes. At times they appointed dictators, who were temporary kings, and at other times military tribunes, who possessed consular authority. All these changes caused such significant alterations in the government that historians find it difficult to identify any perfect form of government within such confusion. At one time the Senate made laws, and at another time the people did. The constant conflicts between the nobles and the common people produced memorable rebellions about debts, marriages, and public offices. The Greek, Apulian, and Drusian uprisings filled marketplaces, temples, and even the Capitol itself with the blood of citizens. The Social War was essentially a civil war; so were the wars of the slaves and of the gladiators, and the civil wars of Marius and Sulla, of Catiline, of Caesar and Pompey, and of the Triumvirate of Augustus, Lepidus, and Antony. All of these conflicts caused an ocean of blood to be shed throughout Italy and the streets of Rome.

Thirdly, regarding its government, let it be admitted that for part of this time it was popular, yet it was popular only within the city of Rome and not throughout the territories or the empire of Rome, because no democracy can extend beyond a single city. It is impossible to govern a kingdom, much less many kingdoms, by the whole people or even by the greater part of them.

(12) But it may be said that the Roman Empire grew entirely under this kind of popular government and that the city became mistress of the world. This is not true, because Rome began its empire under kings and perfected it under emperors; it only increased during the time of popular government. Its greatest height was under Trajan, just as its longest period of peace was under Augustus. Even during those times, when Roman victories abroad astonished the world, the tragic slaughter of citizens at home deserved pity even from their defeated enemies. Although during that age of popular government many admirable captains and commanders were produced, each capable of leading an army—though many of them were kept in check by the people—none of them could support the state in times of danger. Instead, during its greatest

crises, Rome was forced to appoint a dictator, who was a king for a limited time, thereby giving honorable testimony to monarchy, showing that the last refuge in times of national danger is to return to royal authority. And although Rome's popular government was for a time miraculously sustained by a wisdom greater than its own, it was soon ruined by its own actions after many changes. Thus, *Rome perished by its own strength*, for the military power it had prepared to conquer other nations turned against itself, and internal civil conflict finally settled the government once again into a monarchy.

(13) The common opinion is that democratic government was first introduced to restrain the tyranny of monarchies. But the falsehood of this appears in the first flourishing popular government of Athens, which was established not because of the vices of its last king, but because his virtues were so great that the people thought no one else was worthy to succeed him—a rather reckless quarrel with monarchy. When their king Codrus learned from an oracle that his country could not be saved unless the king were killed in battle, he entered the enemy camp in disguise and provoked an ordinary soldier to kill him as a sacrifice for his own kingdom. With his death, royal government ended, and after him there were never any more kings of Athens. Just as Athens, out of love for Codrus, changed its government, Rome, on the contrary, out of hatred for Tarquin, did the same. And although these two famous commonwealths abolished monarchy for opposite reasons, they agreed in this: neither of them thought it proper to change their state into a democracy. Instead, Athens chose archons, and Rome chose consuls as their rulers, both of which closely resembled kings, and these systems continued until the people, by gradually reducing the authority of these magistrates, slowly and secretly introduced popular government. I strongly believe that no democratic state ever fairly presented itself to the world by lawful election, but instead they all quietly entered through the back door of rebellion and faction.

(14) If we listen to the judgment of those who should best understand the nature of popular government, we will find no reason for good men to desire or choose it. Xenophon, that brave scholar and soldier, disapproved of the Athenian commonwealth because it followed a form of government in which wicked men were held in the highest honor while virtuous men were kept down. They expelled Aristides the Just; Themistocles died in exile; Miltiades died in prison; and Phocion, the most virtuous and just man of his time, though he had been chosen forty-five times to be their general, was put to death along with all his friends, relatives, and servants by the rage of the people, without any trial, accusation, or cause at all. Nor were the people of Rome much more favorable to their worthy citizens; they banished Rutilius, Metellus, Coriolanus, the two Scipios, and Tully. The worst men flourished best, for as Xenophon said of Athens, so Rome was a sanctuary for all turbulent, discontented, and rebellious spirits. The protection given to wicked men was so great that, under penalty of death, all magistrates were forbidden to condemn any citizen to death, or to banish him, or to deprive him of his liberty, or even to whip him for any offense he had committed against either gods or men.

The Athenians sold justice just as they sold other goods, which made Plato call a popular state a marketplace where everything is for sale. Officials, when they entered their offices, would boast that they were going to a golden harvest. The corruption of Rome was such that Marius and Pompey dared to carry baskets of silver into the assemblies to buy the votes of the people. Many citizens, wearing their formal robes, came armed into public meetings as if they were going to war. Opposing factions often came to blows, sometimes with stones and sometimes with swords. Blood had to be wiped up in the marketplaces with sponges; the river Tiber was filled with the dead bodies of citizens, and the common sewers were stuffed with them.

If anyone thinks that these disorders in popular states were only accidental, or the kind that might occur under any form of government, he must know that such evils are unavoidable and necessarily follow all democratic governments. The reason is that the nature of all people is to desire liberty without restraint, which can only exist where the wicked hold power. And if the people were wise enough to promote virtuous men, they would lose their power, because good men would favor only what is good, and such men are always few in number. Meanwhile, the wicked and corrupt, who make up the greater part of the people, would be excluded from advancement. In the end, little by little, wise men would take control of the state and remove it from the power of the people.

I do not know how to give a better description of the people than what can be gathered from authors who lived among or near popular states. Thucydides, Xenophon, Livy, Tacitus, Cicero, and Sallust have portrayed them clearly. I will borrow some of their statements:

“There is nothing more uncertain than the people. Their opinions are as changeable and sudden as storms. There is neither truth nor sound judgment in them. They are not guided by wisdom in judging anything, but by violence and rashness. They do not distinguish between what is true and what is false. Like cattle, they follow whatever herd goes before them. They have a habit of favoring the worst and the weakest. They are especially prone to suspicion and will condemn men as guilty based on any false suggestion. They are quick to believe all news, especially if it is bad, and they enjoy spreading it even more than believing it. When there is no source, they fear evils they have invented themselves. They constantly desire new disturbances and changes and are enemies of peace and stability. Whatever is reckless or impulsive they call bold and courageous, but whatever is careful or thoughtful they consider slow or cowardly. Each person cares for his own private interest and thinks foolishly about the common good. They regard approaching disasters as they do thunder, hoping it will not strike them personally. It is their nature either to serve timidly or to rule arrogantly, for they know no middle way. In this way they give life to a creature with many heads. Let me describe their form of government: just as it begins with rebellion, it is sustained by force. It can never stand without wars, either with enemies abroad or with friends at home. The only way to preserve it is to have powerful enemies nearby who may serve in place of a king to govern them, so that even if they have no king

among themselves, they may have something like a king over them. For the shared danger from an enemy keeps them more united than the laws they make for themselves.”

(15) Many have used their intelligence to compare the disadvantages of royal and popular government, but if we trust experience more than philosophical speculation, it cannot be denied that this one evil of rebellion, which necessarily accompanies all popular government, outweighs all the disadvantages that can be found in monarchy, even if they were as numerous as they are not. It is said, “Skin for skin, yes, all that a man has he will give for his life,” and a man will give his wealth to ransom his life. Therefore, the proper way to examine the proportion between the evils of rebellion and tyranny is to ask under which kind of government the greatest number of subjects have lost their lives. Let Rome, which is praised for its popular government and criticized for its tyrannical emperors, provide examples. Consider whether the cruelty of all the tyrannical emperors who ever ruled that city could equal even one quarter of the blood that was shed in the last hundred years of its celebrated commonwealth. The murders committed by Tiberius, Domitian, and Commodus, all combined, cannot equal that civil tragedy that occurred in the single rebellion between Marius and Sulla. By Sulla’s side alone, without even mentioning the actions of Marius, eighty senators were put to death, fifteen consuls, two thousand six hundred gentlemen, and one hundred thousand others.

This was the height of Roman liberty: any man might be killed by anyone who wished. Such a favor would not be granted under a royal government. The miseries of those lawless times are briefly described by Plutarch in these words: Sulla, he says, indulged in bloodshed and filled all Rome with countless and unspeakable murders. This was not done only in Rome, but throughout all the cities of Italy. There was no temple of any god, no altar in any house, no hospital, no father’s home that was not stained with blood and terrible murders. Husbands were killed in their wives’ arms, and children in their mothers’ laps. Yet those who were killed out of private hatred were insignificant compared to those who were murdered only for their property. He openly sold their goods by public proclamation, sitting proudly in his seat of authority, so that it grieved the people more to see their property sorted and distributed to those he gave it to, or sold, than to see it taken away from them. Sometimes he would give an entire country, or the whole revenues of certain cities, to women for their beauty, or to please jesters, actors, or wicked slaves whom he had freed. To some he would give other men’s wives by force and compel them to marry against their will. Let Tacitus and Suetonius be searched to see whether all the cruel emperors can match this popular villainy in such universal slaughter of citizens and civil butchery. God alone was able to match him and surpass him by giving him a death remarkable enough to answer his life. For as he had been the death of many thousands of his countrymen, so many thousands of his own flesh were the cause of his death, because he died of a disease that so corrupted his flesh that it turned entirely into lice. He constantly had to be shifted day and night, yet the lice wiped from him were nothing compared to those that continued to breed upon him. There were neither clothes, linen, baths, washings, nor food itself that was not filled with swarms of this vile infestation.

I mention this not to excuse the bloody acts of tyrannical princes, nor to defend their cruelty. I only argue by comparison that the miseries suffered by a state are less widespread under a tyrant king, because the cruelty of such tyrants usually extends only to particular individuals who offend them and not to the entire kingdom. As the late King James truly said, a king can never be so notoriously wicked that he will not generally favor justice and maintain some order, except in those specific matters where uncontrolled passion carries him away. Even the cruel Domitian, Dionysius the tyrant, and many others are praised by historians as great observers of justice. A natural reason can be given for this. It is the multitude of people and the abundance of their wealth that form the strength and glory of every prince. The bodies of his subjects serve him in war, and their property supplies his daily needs. Therefore, even if not out of affection for his people, yet out of natural self-interest, every tyrant desires to preserve the lives and protect the property of his subjects, which cannot be done without justice. If this is not done, the prince's loss is greatest. On the other hand, in a popular state, every man knows that the public good does not depend entirely on his own effort. The commonwealth may be governed well enough by others while he attends only to his private benefit. He never considers the public business to be his own responsibility. Just as in a household, where one task is to be performed by many servants, each watches the other and leaves the task to his fellow until it is completely neglected by all. Nor are they greatly to be blamed for their neglect, since their ignorance is equal to their number. For magistrates among the people, being mostly appointed annually, usually lay down their office before they fully understand it. Thus, a prince with lesser natural ability, through use and experience, must surpass them. Again, there is no tyrant so barbarously wicked that reason and self-interest will not tell him that, though he is like a god, he must still die like a man, and that it is not the weakest of his subjects who may find a way to avenge the injustice done to him. Therefore, great tyrants live continually in fearful anxiety, as did Dionysius the Elder. Tiberius, Caligula, and Nero are recorded by Suetonius to have been terrified by sudden panics. But this is not so when a wrong is done to a particular individual by a multitude, for he does not know who injured him, or to whom he should complain or seek compensation. Any man may boldly exercise malice and cruelty in popular assemblies. There is no tyranny comparable to the tyranny of a multitude.

(16) Even if the government of the people is something detestable and much less defensible, many men still comfort themselves with the belief that although the people may not govern, they may still share in and join with a king in governing, thereby creating a state mixed with popular and royal authority, which they consider to be the most balanced and equal form of government. But the foolishness of this idea is obvious. It is merely an impossibility or a contradiction, because if a king once allows the people to be his partners, he ceases to be a king and the state becomes a democracy. At best, he would be only a king in name and not in reality, because he would not possess sovereignty himself. Possessing sovereignty alone, and nothing else, is what makes a king.

As for the appearance of popular participation that is found in kingdoms that hold general assemblies to consult about making public laws, it must be remembered that such meetings do not share or divide sovereignty with the prince. They only deliberate and advise their supreme ruler, who still retains absolute authority in himself. For if in such assemblies the king, the nobility, and the people had equal shares in sovereignty, then the king would have only one vote, the nobility would have one vote, and the people would have one vote. In that case, any two of these groups would have the power to overrule the third. Thus, the nobility and the commons together would have the power to make a law binding upon the king, which has never yet been seen in any kingdom. And even if it could happen, the state would then have to be considered popular rather than royal.

(17) If it is unnatural for the multitude to choose their rulers, or to govern, or to share in governing, what should be thought of that harmful conclusion made by many, that the multitude may correct or depose their prince if necessary? Surely the unnaturalness and injustice of this idea cannot be expressed strongly enough. Even if we allow that a king makes a contract or agreement with his people, either originally in his ancestors or personally at his coronation—though both of these claims are imagined by some and supported by no proof—still, by the law of any nation, a contract cannot be considered broken unless there has first been a lawful trial by the proper judge of those who broke it. Otherwise, every man would be both party and judge in his own case, which is absurd to imagine. For then it would lie in the power of a disorderly multitude, whenever they wished to cast off the burden of government that God has placed upon them, to judge and punish the prince, even though they themselves ought to be judged and punished. Aristotle can tell us what sort of judges the multitude are in their own cause. The judgment of the multitude in disposing of sovereignty can be seen in Roman history, where we find many good emperors murdered by the people and many bad ones elected by them. Nero, Heliogabalus, Otho, Vitellius, and other such monsters were favorites of the multitude and were raised up by them. Pertinax, Alexander, Severus, Gordianus, Gallus, Aemilianus, Quintilius, Aurelianus, Tacitus, Probus, and Numerianus, all considered good emperors by historians, were nevertheless murdered by the multitude.

(18) Many, out of an imaginary fear, claim that the power of the people is necessary to restrain the arrogance of tyrants. In doing so, they propose a remedy far worse than the disease, and the disease itself is not as common as they suggest. Let us judge by the history of our own nation. Since the Norman Conquest, we have enjoyed a succession of kings for more than six hundred years, a period far longer than any popular state has ever lasted, if we count the twenty-six princes from the Norman line. Yet not one of these kings is accused by our historians of tyrannical government. It is true that two of these kings were deposed and brutally murdered by the people, but neither of them was deposed for tyranny. As a learned historian of our time states, Edward II and Richard II were not unbearable either in their character or in their rule, yet the people, more from reckless passion than from any real need, took an unbridled course against them. Edward II is described by many historians as a good and virtuous man, and not

uneducated. They attribute his faults more to misfortune than to poor judgment or conduct in government. His deposition was driven by violent fury, led by a wife both cruel and unfaithful, and cannot be justified by any stronger claim of right than the miserable indignities and death he suffered. Likewise, the deposition of King Richard II was caused by a storm of rage, guided neither by reason nor by principles of government. If his actions are examined without prejudice, he will not be condemned as excessively incompetent or wicked. If the accusations made against him are carefully weighed, little truth or importance will be found in them. Hollinshed writes that he was treated very ungratefully by his subjects. Although, because of the weakness of his youth, he demanded more absolute obedience than suited the traditions of his kingdom, yet in no king's reign were the common people more prosperous, the nobility more honored, and the clergy less wronged. Nevertheless, influenced by harmful advice and determined by force, they rose against him, leading to their own reckless destruction afterward, partly during the reign of Henry IV, his successor, whose greatest achievements were against his own people in executing those who had conspired with him against King Richard, but even more in later times, when, as a result of this disorder, more English blood was shed than in all the foreign wars since the Conquest.

Twice this kingdom has been miserably wasted by civil war, yet neither of them was caused by the tyranny of any prince. The wars of the barons are attributed by reliable historians to the stubbornness of the nobility, just as the bloody conflict between the houses of York and Lancaster, and the recent rebellion, arose from the reckless passions of the people. These three unnatural wars dishonored our nation among foreign countries, so that in judging kingdoms, the King of Spain is said to be the king of men because of the willing obedience of his subjects, the King of France is said to be the king of donkeys because of their heavy taxation and burdens, but the King of England is said to be the king of devils because his subjects frequently rise in rebellion against and depose their princes.

Chapter III

Positive Laws Do Not Infringe on the Natural and Fatherly Power of Kings.

(1.) Royal Authority is not subject to Positive Laws; Kings existed before Laws; the King of Judah and Israel was not bound by a Law. (2.) Samuel's description of a King, 1 Sam. 8. (3.) The Power given to Kings in the New Testament. (4.) Whether Laws were invented to restrain Tyrants. (5.) The Benefit of Laws. (6.) Kings keep the Laws, though they are not bound by them. (7.) Of the Oaths of Kings. (8.) Of the Benefit of the King's Prerogative over Laws. (9.) The King is the Author, Interpreter, and Corrector of the Common Laws. (10.) The King, as Judge in all Cases both before the Conquest and since. (11.) The King and his Council have traditionally determined Cases in the Star-Chamber. (12.) Of Parliaments. (13.) When the People were first called to Parliament. (14.) The Liberty of Parliaments does not come from Nature, but from the Grace of the Princes. (15.) The King alone makes Laws in Parliament. (16.) Governs both Houses as their Head by himself. (17.) By his Council. (18.) By his Judges.

(1) Until now I have tried to show the Natural Institution of Royal Authority, and to free it from being Subject to an Arbitrary Election by the People: It is also necessary to examine whether Human Laws have Authority over Princes; because those who maintain that the People have the Right to exercise Royal Jurisdiction also subject the Exercise of it to Positive Laws. But in this they also make a mistake; for just as Kingly Power comes from the Law of God, it has no lower Law that can limit it.

The Father of a Family governs by no other Law than his own Will; not by the Laws and Wills of his Sons or Servants. There is no Nation that allows Children to bring a Legal Action or seek a Remedy for being unjustly Governed; and yet despite all this, every Father is bound by the Law of Nature to do his best for the preservation of his Family; but much more is a King always bound by the same Law of Nature to preserve the general Good, because the safety of the Kingdom is his Chief Law: He must remember that the Profit of every Man in particular, and of everyone together in general, is not always one and the same, and that the Public Good is to be preferred over Private interests, and that the force of Laws must not be so great as natural Fairness itself, which cannot be fully contained in any Laws whatsoever, but must be left to the Religious Judgment of those who know how to manage the Affairs of State, and wisely to Balance the particular Benefit against the Harm to the Public, according to the infinite variety of Times, Places, and Persons; an undeniable Proof of the superiority of Princes above Laws is this, that there were Kings long before there were any Laws: For a long time the Word of a King was the only Law; and if Practice (as Sir Walter Raleigh says) demonstrates the Greatness of Authority, even the best Kings of Judah and Israel were not bound to any Law; but they did whatever they pleased in the most important Matters.

(2.) The Unlimited Authority of Kings is so fully described by Samuel that it has caused some people to imagine that it was either a Plot or Trick of Samuel to keep the Government for himself and his Family, by frightening the Israelites with the Evils of Monarchy, or else a prophetic Description only of the future bad Government of Saul: But the weakness of these Ideas is clearly shown in that Majestic Speech about the true Law of free Monarchy; in which it is plainly shown that Samuel's purpose was to teach the People their duty of Obedience to their King, even in those things which they themselves considered harmful and inconvenient; for by telling them what a King would do, he was indeed teaching them what a Subject must suffer; yet not that it is Right for Kings to cause Injury, but that it is Right for Subjects to submit patiently to the People if they do it: So that in this Point it is all the same whether Samuel describes a King, or a Tyrant, because Patient Obedience is required in both; there is no Remedy in the Text against Tyrants, except crying and praying to God in that Day. But however, if Samuel's description is strictly applied to a Tyrant, the Words by a Harsh Interpretation may agree with the behavior of a Just King; and the Purpose and Meaning of the Text best supports the more Moderate, or Qualified Meaning of the Words; for as Sir Walter Raleigh admits, all those Inconveniences and Miseries which Samuel described as belonging to Kingly Government were not Intolerable, but such as had been suffered, and are still suffered, by the Consent of Subjects toward Kings; Now in this day, and in this Land, many Tenants are tied by their Tenures and Services to the same Submission, even to Subordinate and Inferior Lords: To serve the King in his Wars, and to till his Ground, is not only agreeable to the Nature of Subjects, but much desired by them; according to their several Births, and Conditions: The same may be said for the Offices of Women-Servants, Confectioners, Cooks, and Bakers, for we cannot think that the King would use their Labors without giving them Wages, since the Text itself mentions a Fair Reward for his Servants.

As for taking one tenth of their Seed, of their Vines, and of their Sheep, it might be a Necessary Provision for their King's Household, and so belong to the Right of Tribute: For whereas it is mentioned that the King would take one tenth; it cannot agree well with a Tyrant, who observes no Proportion when taking from his People.

Lastly, the taking of their Fields, Vineyards, and Olive-trees, if it is done by Force or Fraud, or without fair Compensation, to the Damage of Private Persons only, is not to be defended; but if it is done for the public Benefit and General Consent, it might be justified, as necessary at the first Creation of a Kingdom; For those who will have a King are bound to allow him Royal maintenance, by providing Revenues for the CROWN, Since it is both for the Honor, Profit, and Safety too of the People, to have their King Glorious, Powerful, and rich in Riches, besides, we all know the Lands and Goods of many Subjects may sometimes Legally be taken by the King, either by Forfeitures, Escheat, Attainder, Outlawry, Confiscation, or the like. Thus we see Samuel's Description of a King may literally have a Mild Meaning, for it is more likely that Samuel meant, and the Israelites so understood it; to which this may be added, that Samuel tells the Israelites, this will be the manner of the King that shall Reign over you: And You shall cry because of your King which You shall have chosen; that is to say: Thus shall be the common

Custom or Fashion of your King, or the Actions of Saul your King; Or, as the Common Latin translates it, this shall be the Right or Law of your King: not Meaning, as some explain it, the Casual Event, or Act of some individual uncertain, or indefinite King, that might happen one day to Tyrannize over them. So that Saul, and the constant Practice of Saul, both best agree with the Literal Meaning of the Text. Now that Saul was no Tyrant, we may note that the People asked for a King, as All Nations had. God answers, and commands Samuel to listen to the Voice of the People, in all things which they spoke, and appoint them a King. They did not ask for a Tyrant, and to give them a Tyrant, when they asked for a King, would not have been to listen to their Voice in all things, But rather when they asked for an Egg, to have given them a Scorpion: Unless we say, that all Nations had Tyrants. Besides, we do not find in all Scripture that Saul was Punished, or so much as Blamed, for committing any of those Acts which Samuel describes: and if Samuel's purpose had only been to terrify the People, he would not have forgotten to tell Saul's bloody Cruelty, in Murdering 85 innocent Priests, and killing with the Edge of the Sword the City of Nob, both Man, Woman, and Child. Again, the Israelites never shrank at these Conditions proposed by Samuel, but accepted them at once, as such as all other Nations were bound to. For their Conclusion is, No, but we will have a King over Us, that We also may be like all the Nations, and that Our King may Judge us, and go out before us to fight our Battles. Meaning he should earn his Privileges, by doing the work for them, by Judging them, and Fighting for them. Lastly, Whereas the mention of the Peoples crying to the Lord argues that they should be under some Tyrannical Oppression; we may remember, that the Peoples Complaints and Cries are not always an Argument of their living under a Tyrant. No Man can say King Solomon was a Tyrant, yet all the Congregation of Israel complained that Solomon made their Yoke grievous, and therefore their Prayer to Rehoboam is, Make the harsh service of your Father Solomon, and his heavy Yoke which he put upon us, lighter, and we will serve you. To conclude, it is true, Saul lost his Kingdom, but not for being too Cruel or Tyrannical to his Subjects, but by being too Merciful to his Enemies; his sparing Agag when he should have killed him, was the Cause why the Kingdom was taken from him.

(3.) If anyone wants guidance from the New Testament, he may find our Savior limiting and distinguishing Royal Power, By giving to Caesar those things that were Caesar's, and to God those things that were God's. We must obey God rather than men. We must obey where the Commandment of God is not violated; there is no other Law but God's Law that can prevent our Obedience. It was the Answer of a Christian to the Emperor, We worship God, in all other things we gladly serve you. And it seems Tertullian thought that whatever was not God's belonged to the Emperor, when he said, Caesar's money bears Caesar's image, so give the money to Caesar, but give yourself to God. Our Savior has properly divided our Money for Caesar, and ourselves for God, for otherwise, what would God's share be, if everything belonged to Caesar? The Church Fathers mention no reservation of any Power to the Laws of the Land, or to the People. St. Ambrose, in his Defense of David, expressly says, He was a King, and therefore bound by no Laws, because Kings are free from the Bonds of any Fault. St. Augustine also declares, The Emperor is not subject to Laws, because he has the Power to make other Laws. The Emperor is

not subject to Laws, since he has Power to make other Laws. Indeed, it is the Rule of Solomon, that We must keep the King's Commandment, and not ask, What are You doing? because Where the Word of a King is there is Power, and he will do whatever he pleases.

If anyone dislikes this Theology in England, let him listen to Bracton, Chief Justice in Henry the Third's days, which was after the Institution of Parliaments; his Words are, speaking of the King, All are under him, and he is under no one, except only God, etc. All are under him, and he under none, but God only: If he offends, since no Writ can be issued against him, the Remedy is to petition him to correct his Fault; and if he will not do so, it will be Punishment enough for him to expect God as an Avenger: let no one presume to investigate his Deeds, much less to oppose them.

When the Jews asked our Blessed Savior whether they should pay Tribute, he did not first demand to know what the Law of the Land was, or whether there was any Statute against it, nor did he ask whether the Tribute had been approved by the Consent of the People, nor advise them to delay their Payment until they should grant it; he did no more than look upon the Inscription, and concluded, This Image you say is Caesar's, therefore give it to Caesar. Nor should it be said here, that Christ taught this Lesson only to the conquered Jews, for in this he gave Direction for all Nations, who are bound as much in Obedience to their Lawful Kings, as to any Conqueror or Usurper whatsoever.

Whereas being subject to the Higher Powers, some have strained these Words to mean the Laws of the Land, or else to mean the Highest Power, both Aristocratic and Democratic, as Regal: It seems St. Paul anticipated such an Interpretation, and therefore thought it appropriate to explain himself, and to make it known, that by Power he understood a Monarch who carried a Sword: Will you not be afraid of the Power? that is, the Ruler who carries the Sword, for he is the Minister of God to you—but if you do evil, be afraid, for he does not carry the Sword in vain. It is not the Law that is the Minister of God, or that carries the Sword, but the Ruler or Magistrate; so they who say the Law governs the Kingdom might as well say that the Carpenter's Rule builds a House, and not the Carpenter; for the Law is only the Rule or Instrument of the Ruler. And St. Paul concludes, for this Cause pay Tribute also, for they are God's Ministers attending continually upon this very thing. Pay therefore Tribute to whom Tribute is due, Custom to whom Custom. He does not say, give as a gift to God's Minister. But [illegible character] Tax, Render or Restore Tribute, as something due. Also St. Peter most clearly explains this Passage of St. Paul, where he says, Submit yourselves to every Ordinance of Man, for the Lord's sake, whether it be to the King as Supreme, or to Governors, as unto them that are sent by him. Here the very same Word (Supreme, or [illegible character][illegible character]) which St. Paul joins with Power, St. Peter joins with the King, [illegible character] [illegible character] [illegible character] [illegible character], thereby showing that King and Power are both one. Also St. Peter explains his own Words about Human Ordinance, to be the King, who is the Lawgiver, a speaking Law; he cannot mean that Kings themselves are a human Ordinance, since St. Paul calls the Supreme

Power, The Ordinance of God; and the Wisdom of God says, By me Kings Reign: But his meaning must be, that the Laws of Kings are human Ordinances. Next, the Governors that are sent by him: that is by the King, not by God, as some wrongly twist the Text, to justify Popular Governments as authorized by God; whereas in Grammatical Construction the Relative must refer to the next preceding word, which is King; besides, the Contrast between Supreme and Sent, plainly proves that the Governors were sent by Kings; for if the Governors were sent by God, and the King were a Human Ordinance, then it follows, that the Governors were Supreme, and not the King; Or if it is said, that both King and Governors are sent by God, then they are both equal, and so neither of them Supreme. Therefore St. Peter's Meaning is in short, Obey the Laws of the King, or of his Ministers. By which it is evident, that neither St. Peter, nor St. Paul, intended any other Form of Government than only Monarchical, much less any Subjection of Princes to human Laws.

That familiar Distinction of the Scholars, by which they subject Kings to the Guiding, but not to the Compelling Power of Laws, is a Confession, that Kings are not bound by the positive Laws of any Nation, since the compulsory Power of Laws is what properly makes Laws into Laws by binding Men to Obedience through Rewards or Punishment; whereas the Guidance of the Law is only like the Advice and Direction which the King's Council gives the King, which no Man says is a Law to the King.

(4.) There were some who Believe, that the first Invention of Laws was to restrain and moderate the excessive Power of Kings; but the truth is, the Original purpose of Laws was to keep the Multitude in order: Popular States could not exist at all without Laws, whereas Kingdoms were Governed for many Ages without them. The People of Athens, as soon as they gave power over to Kings, were forced to give Power to Draco first, then to Solon, to make them Laws, not to restrain Kings, but themselves; and though many of their Laws were very severe and bloody, yet out of Respect they showed to their Law-makers, they willingly submitted to them. Nor did the People give any Limited Power to Solon, but an Absolute Jurisdiction, with the Power as he pleased to Abolish and Confirm what he thought fit, the People never challenging any such Power to themselves: so the People of Rome gave to the Ten Men, who were to choose and correct their Laws for the Twelve Tables, an Absolute Power, without any Appeal to the People.

(5.) The reason why Laws have also been made by Kings, was this; when Kings were either occupied with Wars, or distracted with public Affairs, so that every private Man could not have Access to their Persons, to learn their Wills and Pleasure; the Law was necessarily invented, so that every particular Subject might find his Prince's Pleasure declared to him in the Tables of his Laws, so that there might be no need to go to the King; but either for the Interpretation or Mitigation of Obscure or Strict Laws, or else in new Cases, for an Addition where the Law was Defective. By this means both King and People were in many ways benefited: First, The King by giving Laws frees himself from great and intolerable Troubles, as Moses did himself by choosing Elders. Secondly, The People have the Law as a Familiar Adviser and Interpreter of the King's

Pleasure, which being published throughout the Kingdom, represents the Presence and Majesty of the King: Also the Judges and Magistrates, whose help in giving Judgment in many Cases Kings need to use, are restrained by the Common Rules of the Law from using their own Liberty to harm others, since they are to judge according to the Laws, and not follow their own Opinions.

(6.) Now although Kings, who make the Laws, are (as King James teaches us) above the Laws; yet will they Rule their Subjects by the Law; and a King, governing in a settled Kingdom, stops being a King, and becomes a Tyrant, as soon as he seems to Rule according to his own Laws; yet where he sees the Laws Rigorous or Doubtful, he may soften and interpret them. General Laws made in Parliament, may, upon known Respects to the King, by his Authority be Mitigated or Suspended, upon Causes only known to him. And although a King should shape all his Actions according to the Laws, yet he is not bound to do so, except by his own Will, and for good Example: Or so far as the General Law of the Safety of the Commonwealth naturally binds him; for in such a way Positive Laws may be said to bind the King, not by being Positive, but because they are naturally the Best or Only Means for the Preservation of the Commonwealth. By this means all Kings, even Tyrants and Conquerors, are bound to preserve the Lands, Goods, Liberties, and Lives of all their Subjects, not by any Municipal Law of the Land, so much as by the Natural Law of a Father, which binds them to value the Actions of their Forefathers and Predecessors, in things necessary for the Public Good of their Subjects.

(7) Others affirm, that although Laws themselves do not bind Kings, yet the Oaths of Kings at their Coronations tie them to keep all the Laws of their Kingdoms. How far this is true, let us examine the Oath of the Kings of England at their Coronation; the words of it are these, Are you pleased to cause to be administered in all your Judgments fair and upright Justice, and to use Discretion with Mercy and Truth? Are you pleased that our rightful Laws and Customs be observed, and do you promise that those shall be protected and maintained by you? These two are the Articles of the King's Oath, which concern the Laity or Subjects in General; to which the King answers affirmatively. Being first asked by the Arch-Bishop of Canterbury, Are you pleased to confirm and observe the Laws and Customs of Ancient Times, granted by God, by just and devout Kings, to the English Nation, by Oath to the said People. Especially the Laws, Liberties, and Customs granted to the Clergy and Laity by the famous King Edward. We may observe, in these Words of the Articles of the Oath, that the King is required to observe not all the Laws, but only the Upright, and those with Discretion and Mercy. The Word Upright cannot mean all Laws, because in the Oath of Richard the Second, I find Evil and Unjust Laws mentioned, which the King swears to abolish; and in the Old Abridgment of Statutes, set forth in Henry the Eighth's days, the King is to swear entirely to put an end to Evil Laws; which he cannot do, if he is bound to all Laws. Now what Laws are Upright and what Evil, who shall Judge but the King, since he swears to administer Upright Justice with Discretion and Mercy (or as Bracton says) with justice before all things, and with mercy. So that in effect, the King does not swear to keep any Laws, but such as in His Judgment are Upright, and those not literally always, but according to Equity of his Conscience, joined with Mercy, which is properly the

Office of a Chancellor rather than of a Judge; and if a King did strictly swear to observe all the Laws, he could not without Perjury give his Consent to the Repealing or Abolishing of any Statute by Act of Parliament, which would be very harmful to the State.

But let it be supposed for Truth, that Kings do swear to observe all the Laws of their Kingdom, yet no man can think it reasonable that Kings should be more bound by their Voluntary Oaths than Common Persons are by theirs. Now if a private person makes a Contract, either with an Oath or without an Oath, he is no further bound than the Equity and Justice of the Contract binds him; for a Man may have Relief against an unreasonable and unjust Promise, if either Deceit, or Error, or Force, or Fear induced him to make it: Or if it is harmful or burdensome in the performance. Since the Laws in many Cases give the King a Prerogative above common Persons, I see no Reason why he should be denied the Privilege which the lowest of his Subjects enjoys.

Here it is appropriate to examine a Question which some have raised, Whether it is a Sin for a Subject to disobey the King, if the Command in which he acts against his Laws? For satisfaction in this point, we must resolve that not only in Human Laws but even in Divine Law, a thing may be commanded contrary to Law, and yet Obedience to such a Command is necessary. The sanctifying of the Sabbath is a Divine Law; yet if a Master commands his Servant not to go to Church on a Sabbath-Day, the best Theologians teach us, That the Servant must obey this Command, though it may be Sinful and Unlawful in the Master; because the Servant has no Authority or Liberty to examine and judge whether his Master sins or not in so commanding: For there may be a just Cause for a Master to keep his Servant from Church, as appears in Luke 14. 5. yet it is not appropriate for the Master to explain to his Servant with his secret Counsels, or present Necessity: And in such Cases, the Servant's not going to Church becomes the Sin of the Master, and not of the Servant. The same may be said of the King's commanding a Man to serve him in the Wars, he may not examine whether the War is Just or Unjust, but must Obey, since he has no Commission to Judge the Titles of Kingdoms, or Causes of War; nor has any Subject Power to Condemn his King for breaking his own Laws.

(8) Many will be ready to say, It is a Slavish and Dangerous Condition to be subject to the Will of any One Man, who is not subject to the Laws. But such Men should consider, 1. That the Prerogative of a King is to be above all Laws, for the good only of those who are under the Laws, and to defend the People's Liberties, as His Majesty graciously affirmed in his Speech after his last Answer to the Petition of Right: However some are afraid of the Name of Prerogative, yet they may assure themselves the Condition of Subjects would be desperately miserable without it. The Court of Chancery itself is nothing but a Branch of the King's Prerogative, to Relieve men against the unavoidable strictness of the Law, which without it is no better than a Tyrant, since the Highest Law is the Highest Injustice. General Pardons, at the Coronation and in Parliaments, are nothing but the Bounty of the Prerogative. 2. There can be no Laws without a Supreme Power to command or make them. In all Aristocracies the Nobles are above the Laws, and in all Democracies the People. By the same Reason, in a Monarchy the

King must necessarily be above the Laws; there can be no Sovereign Majesty in him that is under them; that which gives the very Being to a King, is the Power to give Laws; without this Power he is only a King in name. It does not matter in what way Kings come by their Power, whether by Election, Donation, Succession, or by any other means; for it is still the manner of the Government by Supreme Power that properly makes Kings, and not the means by which they obtain their Crowns. Neither does the Diversity of Laws, nor contrary Customs, by which each Kingdom differs from another, make the Forms of Commonwealth different, unless the Power of making Laws is in several Subjects.

For the Confirmation of this point, Aristotle says, That a perfect Kingdom is one in which the King rules all things according to his Own Will, for he that is called a King according to the Law, does not make any kind of Kingdom at all. This seems also the Romans well understood to be most necessary in a Monarchy; for though they were a People most greedy for Liberty, yet the Senate freed Augustus from all Necessity of Laws, so that he might be free of his own Authority, and of absolute Power over himself and over the Laws, to do what he pleased, and leave undone what he wished, and this Decree was made while Augustus was yet absent. Accordingly we find, that Ulpian the great Lawyer states it for a Rule of the Civil Law; The Prince is not bound by the Laws.

(9.) If the Nature of Laws is carefully considered, and the Necessity that Princes must be above them may become clearer, if we all know that a Law in General is the command of a Superior Power. Laws are divided (as Bellarmine divides the Word of God) into written and unwritten, not because it is not written at all, but because it was not written by the first Creators or Makers of it. The Common Law (as the Lord Chancellor Egerton teaches us) is the Common Custom of the Realm. Now concerning Customs, this must be considered, that for every Custom there was a time when it was not a Custom; and the first Example that we now have, had no Example before it; when every Custom began, there was something else than Custom that made it lawful, or else the beginning of all Customs was unlawful. Customs at first became Lawful only by some Superior, who either Commanded or Consented to their beginning. And the first Power which we find (as is admitted by all men) is the Kingly Power, which was both in this and in all other Nations of the World, long before any Laws, or any other kind of Government was thought of; from which we must necessarily conclude, that the Common Law itself, or Common Customs of this Land, were Originally the Laws and Commands of Kings at first unwritten.

Nor must we think the Common Customs (which are the Principles of the Common Law, and are only few) to be such, or so many, as are able to give special Rules to determine every particular Case. The Variety of Cases is infinite, and impossible to be regulated by any Law; and therefore we find, even in the Divine Laws which are delivered by Moses, there are only certain Principal Laws, which did not determine, but only direct the High-priest or Magistrate, whose Judgment in special Cases did determine, what the General Law intended. It is so with the Common Law, for when there is no perfect Rule, Judges resort to those Principles, or Common Law Principles,

from which former Judgments, in Cases somewhat similar, have been delivered by former Judges, who all receive Authority from the King, in his Right and Name to give Sentence according to the Rules and Precedents of Ancient Times: And where Precedents have failed, the Judges have resorted to the General Law of Reason, and accordingly given Judgment, without any Common Law to direct them. Indeed, many times, where there have been Precedents to direct, they, upon better Reason only, have changed the Law, both in Criminal and Civil Cases, and have not insisted so much on the Examples of former Judges, as examined and corrected their Reasons; therefore it is that some Laws are now obsolete and out of use, and the Practice is completely contrary to what it was in Former Times, as the Lord Chancellor Egerton proves, by several Examples.

Nor is this said to take away from the Common Law, for the Case stands so with the Laws of all Nations, although some of them have their Laws and Principles written and established; for witness to this, we have Aristotle's Testimony in his Ethics, and in several places in his Politics; I will cite some of them: Every Law, he says, is in the General, but of some things there can be no General Law—when therefore the Law speaks in General, and something occurs that falls outside the General Rule: Then it is proper that the Law-maker has omitted something, or where he has made an error by speaking generally, it should be corrected or supplied, as if the Law-maker himself were present to Ordain it. The Governor, whether he be one Man, or more, ought to be Lord over all those things where it was impossible for the Law to exactly speak, because it is not easy to understand all things under General Rules—whatsoever things the Law cannot determine, it leaves to the Governors to give Judgment in them, and allows them to correct whatever upon Trial they find to be better than the Written Laws.

Besides, all Laws are by themselves silent, and someone must be trusted with applying them to Particulars, by examining all Circumstances, to decide when they are broken, or by whom. This work of proper Application of Laws is not an ordinary or obvious thing for ordinary abilities, but requires profound Abilities of Nature, for the discovering of the Truth, witness the Diversity, and sometimes the contradiction of Opinions of the learned Judges, in some difficult Points.

(10) Since this is the common Condition of Laws, it is also most reasonable that the Law-maker should be trusted with the Application or Interpretation of the Laws; and for this reason the Kings of this Land have anciently either personally sat in Courts of Judicature, and still representatively present in all Courts; the Judges are but appointed, and called the King's Justices, and their Power ends when the King is no longer in office. To this purpose Bracton, that learned Chief Justice, in the Reign of Henry the Third, says in express terms; In doubtful and obscure points the Interpretation and Will of our Lord the King is to be expected; since it is his part to interpret, who made the Law; for, as he says in another place, The King owes Justice to no other, if he alone is sufficient to do it, etc. The King, and no one else, ought to give Judgment, if he were able, since by virtue of his Oath he is bound to it; therefore the King ought to exercise Power as the Vicar or Minister of God: But if our Lord the King is not able to determine every

Case, to ease part of his Burdens, by distributing the Burden to more Persons, he ought to choose Wise-Men fearing God, etc. and make Justices of them. Much to the same purpose are the words of Edward the First, in the beginning of his Book of Laws, written by his appointment by John Briton, Bishop of Hereford: We Will, says he, that Our own Jurisdiction be above all the Jurisdications of our Realm, so as in all manner of Felonies, Trespasses, Contracts, and in all other Actions personal or real, We have Power to give such Judgments as do belong without other Process, wherever we know the Right Truth as Judges. Neither may this be taken to mean only an imaginary Presence of the King's Person in His Courts, because he himself immediately afterward in the same place sets forth by themselves the Jurisdications of his Ordinary Courts; but must necessarily be understood as a Jurisdiction remaining in the King's Royal Person. And that this then was no New-made Law, or first introduced by the Norman Conquests, appears by a Saxon Law made by King Edgar, in these words, as I find them in Mr. Lambert. No one shall appeal to the King in a Suit, unless he cannot obtain Justice in his own jurisdiction, and then, if the burden is too heavy for him, let him go to the King to have it resolved.

As the Judicial Power of Kings was exercised before the Conquest, so in those settled times after the Conquest, in which Parliaments were much in use, there was a High-Court following the King, which was the place of Sovereign Justice, both for matters of Law and Conscience, as may appear by a Parliament in Edward the First's time, taking Order, That the Chancellor and the Justices of the Bench should follow the King, to the end that he might always have able Men for his Direction in Suits that came before Him. And this was after the time that the Court of Common-Pleas was made stationary, which is evidence that the King reserved a Sovereign Power, by which he did provide the Remedy, or correct the Strictness of the Common Law; because the Positive Law, being based upon that which happens for the most part, cannot foresee every particular circumstance which Time and Experience bring forth.

(11) Therefore though the Common Law is generally Good and Just, yet in some special Case it may need Correction, because of some particular Circumstance arising, which at the time the Law was made was not thought of. Also sudden things happen, both in War and Peace, that require extraordinary help, and cannot wait for the Usual Process of Common Law, which is not carried out all at once, but altogether after one sort, and that not without delay of help and expense of time; so that although all Causes are, and ought to be referred to the Ordinary Process of common Law, yet rare matters from time to time do arise, for just Reasons, to be referred to the help of the absolute Authority of the Prince; and the Statute of Magna Carta has been understood as the Institution that made the ordinary Jurisdiction in Common Causes, and not as restricting the Absolute Authority, serving only in a few rare and unusual Cases: for though the Subjects were put to great damage by False Accusations and Malicious Suggestions made to the King and His Council, especially during the time of King Edward the Third, while he was absent in the Wars in France, so much so that in His Reign several Statutes were made, That provided no one should be put to answer before the King and His Council without due Process; yet it is apparent that the necessity of such Proceedings was so great, that both before Edward the Third's

days, and in his time, and after his Death, several Statutes were made, to help and order the Proceedings of the King and his Council. As the Parliament in 28. Edw. 1. Cap. 5 provided. That the Chancellor and Justices of the King's Bench should follow the King; that as he might have near unto him some that he learned in the Laws, who be able to order all such matters as shall come unto the Court, at all times when need shall require. By the Statute of 37. Edw. 3. Cap. 18. False Accusations were ordered, in case the Suggestion to the King proved untrue. Then 38. Edw. 3. Cap 9. takes away Retaliation, and appoints Imprisonment until the King and Party harmed are satisfied. In the Statutes of 17. Ric. 2. Cap. 6. and 15. Hen. 6. Cap. 4. Damages and Expenses are awarded in such Cases. In all these Statutes it is necessarily implied, that Complaints upon just Causes might be moved before the King and His Council.

At a Parliament at Gloucester, 2. Ric. 2 Ric. 2 [illegible?] when the Commons made a Petition, That none might be forced by Writ out of Chancery, or by Privy Seal, to appear before the King and His Council, to answer touching Free-hold. The King's answer was He thought it not reasonable that He should be restrained to send for his Subjects upon Causes reasonable. And although He did not intend that such answer should apply to questions of their Free-hold, but should be kept for trial thereof, as Law required: Provided always, he said, that at the Suit of the Party, where the King and His Council shall be credibly informed, that because of Maintenance, Oppression, or other Outrages, the Common Law cannot have its proper Course, in such case the Council shall act for the Party.

Also in the 13th Year of his Reign when the Commons did pray, that under penalty of Forfeiture, the Chancellor or Council of the King, should not after the end of the Parliament make any Ordinance against the Common Law; the King answered, Let it be used as it has been used before this time, so as the Royal Authority of the King be preserved, for the King will preserve His Royal Rights as His ancestors have done.

Again, in the 4th year of Henry the Fourth, when the Commons complained against Subpoenas and other Writs, based upon false Suggestions; the King answered, That he would give in Charge to His Officers, that they should abstain more than before time they had, to send for His Subjects in that manner. But yet, said He, it is not Our Intention, that Our Officers shall so abstain, that they may not send for Our Subjects in Matters and Causes necessary, as it has been used in the time of our good Ancestors.

Likewise when for the same Cause Complaint was made by the Commons, Anno 3. Hen. 5. the King's Answer was, The King will be advised; which amounts to a Denial for the present, by a Phrase peculiar for the King's denying to pass any Bill that has passed the Lords and Commons.

These Complaints of the Commons, and the Answers of the King, show, That such moderation should be used, that the course of the common Law be ordinarily maintained, so that Subjects are not brought before the King and his Council without just cause, that the Proceedings of the Council be not upon every slight Suggestion, nor finally determine concerning Freehold or

Inheritance. And yet that upon reasonable, upon credible Information, in matters of weight, the King's Royal Authority or Prerogative, in sending for His Subjects, be maintained, as by Right it ought, and in former times had been constantly used.

King Edward the First, finding that Bogo de Clare was discharged of an Accusation brought against him in Parliament, for that some formal Imperfections were found in the Complaint, nevertheless commanded him to appear before Him and His Council, in order to be punished and receive his due for the Crime and Offense of which the King's Council found him guilty; and so proceeded to an Examination of the whole Case. 8. Edw. 1.

Edward the Third, in the Star-Chamber (which was the Ancient Council-Chamber at Westminster) upon the Complaint of Elizabeth Audley, commanded James Audley to appear before Him and His Council, and determined a Controversy between them, concerning Lands contained in the Covenants of her Jointure. Rot. Claus. de an. 41. Ed. 3.

Henry the Fifth, in a Suit before Him and His Council for the Titles of the Manors of Seere and S. Laurence, in the Isle of Thanet in Kent, took order for Seizing the Profits until the Right were tried, as well for avoiding the breach of the Peace, as for prevention of waste and destruction. Rot. Patin. Anno 6. Hen. 5.

Henry the Sixth commanded the Justices of the Bench to delay the Arraignment of one Verney of London, until they had other commandment from Him and His Council, because Verney, being indebted to the King and others, arranged to be Indicted of Felony, in which he might have his Clergy, and make his Purgation, with the intention of cheating his Creditors. 34. Hen. 6 Rot. 37. in Banco Regis.

Edward the Fourth and His Council in the Star-Chamber, heard the Cause of the Master and Poor Brethren of S. Leonards in York, complaining, that Sir Huge Hastings, and others, withdrew from them a great part of their Living, which consisted chiefly upon the having of a portion of Corn from every Plough-Land within the Counties of York, Westmorland, Cumberland, and Lancashire. Rot. Patent de Anno 8 Ed. 4. Part 3. Memb. 14.

Henry the Seventh and His Council, in the Star-Chamber, decreed, That Margery and Florence Beckett should sue no further in their Cause against Alice Radley, Widow, for Lands in Wolvich and Plumstead in Kent; for as much as the Matter had been heard first before the Council of King Edw. 4. after that before the President of the Requests of that King, Hen. 7. and then lastly, before the Council of the said King. 1 Hen. 7.

What has so far been affirmed of the Dependence and Subjection of the Common Law to the Sovereign Prince, the same may be said as well of all Statute Laws; for the King is the sole immediate Author, Corrector, and Moderator of them also; so that neither of these two kinds of Laws are or can be any Limitation of that Natural Power, which Kings have over their People, by

right of Fatherhood, but rather are an Argument to strengthen the truth of it; for Evidence of this, we may in some points consider the nature of Parliaments, because in them only all Statutes are made.

(12.) Though the Name of Parliament (as Mr. Cambden says) is not very Ancient, but brought in out of France, yet our Ancestors, the English Saxons, had a Meeting, which they called, The Assembly of the Wise; called in Latin, The Great Meeting, or, The Presence of the Kingdom; and many of our Kings in earlier times made use of such great Assemblies to consult about important Affairs of State; all which Meetings, in a General Sense, may be called Parliaments.

Great are the Advantages which both the King and People may receive from a well-ordered Parliament; there is nothing more that expresses the Majesty and Supreme Power of a King, than such an Assembly, in which all his People acknowledged him as Sovereign Lord, and made all their Addresses to him by humble Petition and Request; and by their Consent and Approval strengthened all the Laws, which the King, at their Request and by their Advice and Ministry, shall establish. Thus they make the Government of the King easier, by making the Laws unquestionable, either to the Subordinate Magistrates or rebellious Multitude. The benefit which comes to the Subject through Parliaments, is, That by their Prayers and Petitions Kings are drawn many times to correct their just Complaints, and are overcome by their persistence to grant many things which otherwise they would not agree to; for the Voice of a Multitude is more easily heard. Many Complaints of the People are without the knowledge of the King; who in Parliament sees and hears his People himself; whereas at other times he commonly uses the Eyes and Ears of other Men.

Against the Ancient nature of Parliaments we need not argue, since the more ancient they are, the more they support the Honour of Monarchy; yet there are certain Circumstances concerning the Forms of Parliaments, which are appropriate to be considered.

First. We are to remember, that until about the time of the Conquest, there could be no Parliaments assembled of the General States of the whole Kingdom of England, because until those days we cannot learn it was entirely united into one Kingdom; but it was either divided into several Kingdoms, or governed by several Laws. When Julius Caesar landed, he found 4 Kings in Kent; and the British Names of Dammonii, Durotriges, Belgae, Attrebatii, Trinobantes, Icenii, Silures, and the rest, are plentiful Testimonies of the several Kingdoms of Britains, when the Romans left us. The Saxons divided us into 7 Kingdoms: when these Saxons were united all into a Monarchy, they had always the Danes their Companions, or their Masters in the Empire, until Edward the Confessor's Days, since whose time the Kingdom of England has continued United, as it does now: But for a thousand Years before we cannot find it was entirely settled, during the time of any one King's Reign. As under the Mercian Law: The West Saxons were confined to the Saxon Laws; Essex, Norfolk, Suffolk, and some other Places, were governed by Danish Laws: The Northumbrians also had their Laws apart. And until Edward the Confessor's Reign, who was

the next but one before the Conqueror, the Laws of the Kingdom were so several and uncertain, that he was forced to gather a few of the most different and best of them, which were from him called St. Edward's Laws: Yet some say that Edgar made those Laws, and that the Confessor did not restore and amend them. Alfred also gathered out of many Laws, such as he translated into the Saxon Language. Thus during the time of the Saxons, the Laws were so variable, that there is little or no likelihood of finding any constant Form of Parliaments of the whole Kingdom.

(13) A second Point to consider is, Whether in such Parliaments, as was in the Saxons' times, the Nobility and Clergy only were members of those Assemblies, or whether the Commons were also called? Some are of the Opinion, that though none of the Saxon Laws mention the Commons, yet it may be gathered from the word Wisemen, that the Commons are intended to be members of those Assemblies, and they bring (as they believe) probable arguments to prove it, from the Antiquity of some Boroughs that still send Burgesses, and from the Requirement of those in Ancient Royal Lands, not to send Burgesses to Parliament. If it be true, that the West-Saxons had a Custom to assemble Burgesses out of some of their Towns, yet it may be doubted, whether other Kingdoms had the same custom; but sure it is, that during the Heptarchy, the People could not Elect any Knights of the Shire, because England was not then divided into Shires.

On the contrary, there are some of our Historians who do affirm, that Henry the First caused the Commons first to be Assembled by Knights and Burgesses of their own Appointment, for before his Time only certain of the Nobility and Prelates of the Realm were called to Consultation about the most Important Affairs of State. If this Assertion be true, it seems merely a matter of Grace of this King, and proves not any Natural Right of the People, Originally to be admitted to choose their Knights and Burgesses of Parliament; though it had been more for the Honour of Parliaments, if a King, whose Title to the Crown had been better, had been Author of the Form of it; because he made use of it for his unjust Ends. For by the Law he secured himself against his Competitor and Elder Brother, by taking the Oaths of the Nobility in Parliament: and getting the Crown to be settled upon his Children. And as the King made use of the People, so they, through the Parliament, served their own interests; for after the Establishment of Parliaments by strong hand, and by the Sword, they drew from him the Great Charter, which he granted rather to flatter the Nobility and People, as Sir Walter Raleigh in his Dialogue of Parliaments affirms, in these words: The great Charter was not Originally granted Lawfully and Freely; for Henry the First did but Usurp the Kingdom, and therefore, the better to assure himself against Robert his Elder Brother, he flattered the Nobility and People with their Charters; yes, King John, that Confirmed them, had the same respect, for Arthur Duke of Britain was the undoubted Heir of the Crown, upon whom King John Usurped, and so to conclude, these Charters had their Original from Kings in fact, but not in law—the Great Charter had first an obscure Birth by Usurpation, and was secondly fostered and shown to the World by Rebellion.

(14) A third consideration must be, that in the former Parliaments, established and continued since King Henry the First's time, the Usage of any natural Liberty of the People is not to be found; for all those Liberties that are claimed in Parliament are the Liberties of Grace from the King, and not the Liberties of Nature belonging to the People; for if the Liberty were natural, it would give Power to the Multitude to assemble themselves Whenever and Wherever they please, to give Sovereignty, and by Factions to limit and direct the Exercise of it. Whereas, the Liberties of Favour and Grace, which are claimed in Parliaments, are restrained both in Time, Place, Persons, and other Circumstances, to the Sole Pleasure of the King. The People cannot assemble themselves, but the King, by his Writs, calls them to whatever place he pleases; and then again dismisses them with his Breath at an instant, without any other Cause shown than his Will. Neither is the whole People summoned, but only so many as the King's Writs appoint. The prudent King Edward the First, summoned always those Barons of ancient Families, that were most wise to his Parliament, but left out their Sons after their Death, if they were not answerable to their Parents in Understanding. Nor have the whole People Voices in the Election of Knights of the Shire or Burgesses, but only Freeholders in the Counties, and Freemen in the Cities and Boroughs; yet in the City of Westminster all the House-holders, though they be neither Freemen nor Freeholders, have Voices in their Election of Burgesses. Also during the time of Parliament, those Privileges of the House of Commons, of freedom of Speech, power to punish their own Members, to examine the Proceedings and Conduct of Courts of Justice and Officers, to have access to the King's Person, and the like, are not due by any Natural Right, but are derived from the Bounty or Indulgence of the King, as appears by a solemn Recognition of the House: for at the opening of the Parliament, when the Speaker is presented to the King, he, in the behalf and name of the whole House of Commons, humbly asks of His Majesty, That He would be pleased to grant them their Customary Liberties of freedom of Speech, of access to his Person, and the rest. These Privileges are granted with a Condition implied, That they keep themselves within the Bounds and Limits of Loyalty and Obedience; or else why do the House of Commons inflict Punishment themselves upon their own Members for violating in some of these points; and the King, as Head, has many times punished the Members for the same Offenses. The Power which the King gives, in all his Courts, to his Judges or others to punish, does not exclude Him from doing the same, by way of Prevention, Concurrence, or Revocation, even in the same point which he has given in charge by a delegated Power; for those who give Authority by Commission, always retain more than they grant: Neither of the two Houses claim an Infallibility of not Erring, no more than a General Council can. It is not impossible but that the greatest may be in Fault, or at least interested or engaged in the Wrongdoing of one particular Member. In such Cases it is most proper for the Head to correct, and not to expect the Consent of the Members, or for the Parties involved to be their own Judges. Nor is it needful to confine the King, in such Cases, within the Circle of any one Court of Justice, who is Supreme Judge in all Courts. And in rare and new Cases, rare and new Remedies must be sought out; for it is a Rule of the Common Law, In new Cases, a new Remedy must be applied: and the Statute of Westminster. 2. cap. 24. gives Power, even to the Clerks of the Chancery, to make New Forms of Writs in New

Cases, lest any Man that came to the King's Court of Chancery for help, should be sent away without Remedy: A Precedent cannot be found in every Case; and of things that happen seldom, and are not common, there cannot be a Common Custom. Though Crimes Exorbitant do put the King and Council in finding a Precedent for a Condign Punishment, yet they must not therefore pass unpunished.

I have not heard that the People, by whose Votes the Knights and Burgesses are chosen, ever call them to account for how they had Elected; they neither give them Instructions or Directions what to say, or what to do in Parliament, therefore they cannot punish them when they come home for doing wrongly: If the People had any such Power over their Burgesses, then we might call it, The Natural Liberty of the People, with a problem. But they are so far from punishing, that they may be punished themselves for interfering with Parliamentary Business; they must only choose, and trust those whom they choose to do what they think best; and that is as much liberty as many of us deserve, for our irregular Elections of Burgesses.

(15) A fourth point to consider is, That in Parliament all Statutes or Laws are properly made by the King alone, at the Request of the People, as His Majesty King James, of happy Memory, affirms in his true Law of free Monarchy; and as Hooker teaches us, That Laws do not take their binding force from the Quality of those who create them, but from the Power that gives them the Strength of Laws: The King wills it, the King will have it so, is the Interpretive Phrase pronounced at the King's passing of every Act of Parliament: And it was the ancient Custom for a long time, until the days of Henry the Fifth, that the Kings, when any Bill was brought to them that had passed both Houses, would take and choose out what they liked, and reject as much as they chose, and so enacted a Law: but the Custom of the later Kings has been so gracious, as to allow always the entire Bill as it had passed both Houses.

(16.) The Parliament is the King's Court, for so all the oldest Statutes call it, the King in His Parliament: But neither of the two Houses are that Supreme Court, nor yet both of them together; they are only Members, and a part of the Body, of which the King is the Head and Ruler. The King's Governing of this Body of the Parliament we may find most clearly proved both by the Statutes themselves, as also by such Presidents as expressly show us, how the King, sometimes by himself, sometimes by his Council, and other times by his Judges, has overruled and directed the Judgments of the Houses of Parliament: for the King, we find that Magna Charta, and the Charter of Forests, and many other Statutes about those times, had only the Form of the Kings Letters-Patents, or Grants under the Great Seal, testifying those Great Liberties to be the sole Act and Bounty of the King: The words of Magna Charta begin thus; Henry, by the Grace of God, etc. To all our Arch-Bishops, etc. and Our Faithful Subjects Greeting: Know, that We, of Our mere free Will, have granted to all Free-men these Liberties. In the same style goes the Charter of Forests, and other Statutes. Statutum Hiberniae, made at Westminster, 9. February 14. Hen. 3. is only a Letter of the King to Gerrard, Son of Maurice, Justice of Ireland. The Statute de anno

Bissextili begins thus, The King to His Justices of the Bench, Greeting, etc. Explanations of the Statute of Gloucester, made by the King and his Justices only, were received always as Statutes, and are still Printed among them.

The Statute made for Correction of the 12th Chapter of the Statute of Gloucester, was Signed under the Great Seal, and sent to the Justices of the Bench, after the manner of a Writ Patent, with a certain Writ closed, dated by the King's Hand at Westminster, requiring that they should do, and execute all and every thing contained in it, although the same do not agree with the Statute of Gloucester in all things.

The Statute of Rutland, is the King's Letters to his Treasurer and Barons of his Exchequer, and to his Chamberlain.

The Statute of Circumspecte Agis runs, The King to his Judges sends Greeting.

There are many other Statutes of the same Form, and some of which run only in the Majestic Terms of, The King Commands, or, The King Wills, or, Our Lord the King has Established; or, Our Lord the King has ordained: or, His Special Grace has granted: Without mention of Consent of the Commons or People; so much that some Statutes rather resemble Proclamations, than Acts of Parliament: And indeed some of them were no other than mere Proclamations; as the Provisions of Merton, made by the King at an Assembly of the Prelates and Nobility, for the Coronation of the King and his Queen Eleanor, which begins, Provision was made in the Royal Court at Merton. Also a Provision was made 19. Hen. 3. against ultimate Presentations, which was continued and allowed for Law, until Tit. West. 2. an. 13. Ed. 1. cap. 5. which provides the contrary in express words: This Provision begins, Provision was made before our Lord the King, the Archbishops, Bishops, and Barons, etc. It seems Originally the difference was not great between a Proclamation and a Statute; this latter the King made by Common Council of the Kingdom. In the former he had only the advice of his great Council of the Peers, or of his Privy Council only. For that the King had a great Council, besides his Parliament, appears by a Record of 5. Hen. 4. about an Exchange between the King and the Earl of Northumberland: Whereby the King promised to deliver to the Earl Lands to the value, by the Advice of Parliament, or otherwise by the Advice of his Grand Council, and other Estates of the Realm, which the KING will assemble, in case the Parliament do not meet.

We may find what Judgment in later times Parliaments have had of Proclamations, by the Statute of 31. of Hen. cap. 8. in these words: Because the King, by the Advice of his Council, has set forth Proclamations, which stubborn Persons have despised; not considering what a King by his Royal Power may do: Considering that sudden Causes and Occasions, fortunate many times, which do require speedy Remedies, and that by waiting for a Parliament, in the meantime great Harm might happen to the Realm: And considering also, that his Majesty, which by the Kingly

and Regal Power given him by God, may do many things in such Cases, should not be driven to extend the Liberties, and Supremacy of his Regal Power and Dignity, by willfulness of rebellious Subjects: It is therefore thought fit, that the King with the Advice of his Honourable Council should set forth Proclamations for the good of the People, and defense of his Royal Dignity, as necessity shall require.

This Opinion of a House of Parliament was confirmed afterwards by a second Parliament, and the Statute made Proclamations as valid as if they had been made in Parliament. This Law continued until the Government of the State came to be under a Protector, during the Minority of Edward the Sixth, and in his first Year it was Repealed.

I find also, that a Parliament in the 11th Year of Henry the Seventh, did so greatly respect the Actions, or Ordinances of the King, that by Statute they provided a Remedy or Means to levy a Benevolence granted to the King, although by a Statute made not long before all Benevolences were Condemned and Annulled forever.

Mr. Fuller, in his Arguments against the proceedings of the High-Commission Court, affirms, that the Statute of 2 H. 4. cap. 15. which gave Power to Ordinaries to Imprison and set Fines on Subjects, was made without the Assent of the Commons, because they are not mentioned in the Act. If this Argument be good, we shall find very many Statutes of the same kind, for the Assent of the Commons was seldom mentioned in the Elder Parliaments. The most usual Title of Parliaments in Edward the 3d, Rich. 2. the three Henries 4, 5, 6. in Edw. 4. and Rich. 3. days, was: The King and his Parliament, with the Assent of the Prelates, Earls and Barons, and at the Petition, or at the special Request of the Commons, does Ordain.

The same Mr. Fuller says, that the Statute made against Lollards, was without the Assent of the Commons, as appears by their Petition in these Words, The Commons request, that whereas a Statute was made in the last Parliament, etc. which was never Assented nor Granted by the Commons, but that which was done therein, was done without their Assent.

(17.) How far the King's Council has directed and influenced Parliament, has in part appeared by what has already been shown. For further Evidence, we may add the Statute of Westminster: The first which says, These are the Acts of King Edw. 1. made at his first Parliament General, by his Council, and by the Assent of Bishops, Abbots, Priors, Earls, Barons, and all the Community of the Realm, etc. The Statute of Bigamy says, In the presence of certain Reverend Fathers, Bishops of England, and others of the King's Council, because all the King's Council, as well Justices as others, did agree that they should be put in writing, and observed. The Statute of Acton Burnel says, The King, for Himself, and by His Council, has Ordained and Established.

In the Articles upon the Charters; when the Great Charter was confirmed, at the Request of his Prelates, Earls and Barons, we find these Passages. 1. Nevertheless the King and his Council do not intend by reason of this Statute to diminish the King's Right, etc. 2. And notwithstanding all these things mentioned before, or any part of them; both the King and his Council, and all they that were present at the making of this Ordinance, will and intend that the Right and Prerogative of his Crown shall be preserved to him in all things. Here we may see in the same Parliament the Charter of the Liberties of the Subjects confirmed, and a saving of the King's Prerogative: Those times neither stumbled at the Name, nor imagined any such Conflict between the Terms, as should make them incompatible.

The Statute of Escheators has this Title, At the Parliament of our Sovereign Lord the King, by his Council it was agreed, and also by the King himself commanded. And the Ordinance of Inquest says thus, It is agreed and ordained by the King himself, and all his Council.

The Statute made at York 9. Edw. 3. says, Whereas the Knights, Citizens, and Burgesses desired our Sovereign Lord the King in his Parliament, by their Petition, that for his Profit, and the Community of his Prelates, Earls, Barons, and Commons, it may please him to provide a remedy; our Sovereign Lord the King desiring the benefit of his People by the assent of his Prelates, Earls, Barons, and other Nobles of his Council being there, has ordained

In the Parliament before Edward the Third, where Magna Charta was confirmed, I find this Preamble, At the Request of the Commons by their Petition made before the King and His Council in Parliament, by the assent of the Prelates, Earls, Barons, and other Great Men assembled, it was Granted.

The Commons presenting a Petition to the King, which the King's Council did not like, were content then to amend and explain their Petition; the Form of which Petition is in these words, To their most respected Sovereign Lord the King, praying the said Commons, That whereas they have prayed of Him to discharge all manner of Articles of the Eyre, etc. Which Petition seems to His Council to be harmful to Him, and to the Disinheritance of His Crown, if it were so generally granted. His said Commons not willing nor desiring to demand things of Him, which should result in Disinheritance of Him or His Crown forever, as of Escheators, etc. but of Trespasses, Imprisonments, Negligences, and Ignorances, etc.

In the time of Henry the Third, an Order or Provision was made by the King's Council, and it was pleaded at the Common Law in Bar to a Writ of Dower. The Plaintiff's Attorney could not deny it, and thereupon the Judgment was decided against him. It seems in those days an Order of the Council-Board was either part of the Common-Law, or above it.

The Reverend Judges have had regard in their Proceedings, that before they would resolve or give Judgment in new Cases, they consulted with the King's Privy-Council. In the Case of Adam Brabson, who was assaulted by R. W. in the presence of the Justices of Assize at Westminster, the Judges would have the Advice of the King's Council: For in a similar Case, because R. C. did strike a Juror at Westminster which passed in an Inquest against one of his Friends, it was judged by all the Council that his right hand should be cut off, and his Lands and Goods forfeited to the King.

Green and Throp were sent by Judges of the Bench to the King's Council, to demand of them whether by the Statute of 14. Ed. 3. cap. 16. a Word may be amended in a Writ; and it was answered, that a Word may well be amended, although the Statute speaks only of a Letter or Syllable.

In the Case of Sir Tho Oghtred, Knight, who brought a Formedon against a poor Man and his Wife; they came and submitted to the Claimant, which seemed suspicious to the Court, and so Judgment was delayed; and Thorp said, That in the similar Case of Giles Blacket, it was spoken of in Parliament, and we were commanded, that when any similar Case should come, we should not go to Judgment without good advice: therefore the Judges' Conclusion was, We have Council, and as the saying goes, we must seek advice from the wise, and otherwise not in this case. Sue to the Council, and as they will have us do, we will; and otherwise not in this case.